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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEFENDANT CSAA INSURANCE
EXCHANGE'S SUPPLEMENTAL BRIEF
IN SUPPORT OF THE COURT'S
JURISDICTION TO HEAR THE
DEFENDANT'S MOTION TO DECLARE
PLAINTIFF A VEXATIOUS LITIGANT**

Date: October 6, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant CSAA
4 INSURANCE EXCHANGE (collectively "Defendant"). This declaration is submitted in support of
5 Defendant's Supplemental Brief in Support of the Court's Jurisdiction to Hear the Defendant's
6 Motion to Declare Plaintiff a Vexatious Litigant. The following facts are within my personal
7 knowledge and, if called as a witness herein, I can and will competently testify thereto.

8 2. After this Court granted Defendant's Anti-SLAPP motion in the above-captioned
9 case, Plaintiff has repeatedly threatened to file further action against Defendant—in Contra Costa
10 County—in a misguided effort to circumvent this Court's Order granting Defendant's Anti-SLAPP
11 motion.

12 3. Plaintiff has made good on these threats, as he has now filed a duplicate action, to
13 this action, now in Contra Costa County Superior Court. Attached hereto as **Exhibit A** is a true and
14 correct copy of Plaintiff's Verified Complaint for Common-Law Fraudulent Misrepresentation,
15 filed on August 25, 2026, entitled *Rosario v. CSAA, Contra Costa County Superior Court Case No.*
16 *26-02801*.

17 4. Furthermore, Plaintiff's appeal of his loss by defense verdict of his underlying
18 personal injury jury trial, entitled *Rosario v. Abdelhalim, San Francisco County Superior Court*
19 *Case No. CGC-21-594102*, has very recently been affirmed on appeal. Attached hereto as **Exhibit B**
20 is a true and correct copy of the unpublished opinion from the First District Court of Appeal in
21 *Rosario v. Abdelhalim, Case No. A173827*.

22 5. After Plaintiff's loss on appeal, he has continued his barrage of email
23 correspondences containing personal attacks against Defense counsels. Attached hereto as
24 **Exhibit C** is a true and correct copy of an email correspondence exchange between Plaintiff and
25 defense counsels.

26 ///

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1 I declare under the penalty of perjury under the laws of the State of California that the
2 foregoing is true and correct, and that this declaration was executed on September 22, 2026, at
3 Sacramento, California.

4
5 *Tyler J. O'Connell*
6 Tyler J. O'Connell
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EXHIBIT A

SUMMONS ISSUED



Franciscus Dylan Rosario,
7624 Melody Drive,
Rohnert Park, CA 94928,
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff in propria persona

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF CONTRA COSTA**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: C26-02801

UNLIMITED CIVIL CASE

Amount demanded exceeds
thirty-five thousand dollars

JURY TRIAL DEMANDED

**VERIFIED COMPLAINT FOR
COMMON-LAW FRAUDULENT
MISREPRESENTATION**

(Civ. Code, secs. 1709, 1710, subd. (1))
(Moradi-Shalal (1988) 46 Cal.3d 287,
304-305; Zhang (2013) 57 Cal.4th 364, 377)

Wakefield Taylor Courthouse
(Martinez)

PER LOCAL RULE, THIS
CASE IS ASSIGNED TO
DEPT. 16, FOR ALL
PURPOSES.

Case No.: _____

Plaintiff Franciscus Dylan Rosario ("Plaintiff") alleges as follows.

I. NATURE OF THE ACTION

1. This is an unlimited civil action for a single count of common-law fraudulent misrepresentation under Civil Code sections 1709 and 1710, subdivision (1).
2. The wrong arises exclusively from Defendant's non-protected, purely commercial affirmative

1 misrepresentations made directly to Plaintiff in the ordinary, routine course of business adminis-
2 tration regarding Claim No. 1004-09-1054. On February 25, 2021, Defendant, through its Claims
3 Representative Sarah Rash, acting in the course and scope of her employment and authority as
4 Defendant's corporate speaker (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638), issued a
5 formal written claims-handling communication to Plaintiff affirmatively representing as a matter
6 of past historical fact that Defendant had already concluded its investigation of the claim and had
7 carefully reviewed the facts and circumstances of the claim. Those are the letter's exact words.
8 The alleged falsity concerns what Defendant had actually done before making that representation.
9 The letter does not state that public-safety records were gathered, and it does not state that no such
10 records existed. Said communication was issued years prior to any actual or contemplated judicial
11 proceeding.

12 3. Defendant transmitted this writing solely as a routine claims-handling and claim-disposition
13 communication in the ordinary course of its insurance business. The letter was generated and
14 sent by Defendant's claims representative in the performance of Defendant's ordinary claims-
15 administration function. It was not a demand letter, litigation notice, settlement demand, attorney-
16 to-attorney communication, or communication prepared for or in furtherance of a judicial pro-
17 ceeding. At the time the statement was made, no litigation between Plaintiff and Defendant was
18 pending, threatened, or contemplated; no complaint had been filed; no litigation demand had been
19 made; no attorney had appeared for Plaintiff in connection with the claim; no settlement negoti-
20 ations concerning contemplated litigation were underway; Defendant had not retained litigation
21 counsel concerning Plaintiff; Defendant's letter did not reference any anticipated judicial proceed-
22 ing; and no judicial proceeding existed to which the communication related. Defendant's letter
23 instead communicated its purported investigation and disposition of the insurance claim as routine
24 commercial claims disposition in the ordinary course of business. An insurer's internal business
25 decision cannot retroactively be recast as protected petitioning or Civil Code section 47, subdi-
26 vision (b), litigation conduct. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
27 Cal.4th 1232, 1251; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396; *People ex rel. Fire Ins. Ex-*
28 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)

1 69 Cal.App.4th 140, 147-148; *Shannon v. Telecommunications Co.* (1996) 45 Cal.App.4th 244,
2 254.)

3 4. At the time Defendant made said affirmative representations, Defendant's claim file held an
4 empty evidentiary repository containing no 911 audio, no body-worn camera recording, no computer-
5 aided dispatch (CAD) record, no documented request for those records, no receipt of those records,
6 and no documented review of those records regarding the silent-witness emergency service record-
7 ings and eyewitness accounts. Defendant is bound by later written representations that it reviewed
8 the available evidence, including statements of its insured, and that it performed an investigation
9 before informing Plaintiff of its decision. Those representations concern completeness of Claim
10 No. 1004-09-1054 as of February 25, 2021. They are party admissions under Evidence Code sec-
11 tions 1220 and 1222. The official police report of the February 4, 2021 vehicle-pedestrian collision
12 specifically cites 911 recordings and other contemporaneous materials, including the existence of
13 body-worn cameras. A true and correct copy of that official police report is attached as Exhibit B
14 and incorporated herein by reference. Defendant's representations that an investigation had been
15 concluded and that the facts had been carefully reviewed were factually false because Defendant's
16 own claim-file evidence demonstrates that the asserted investigative acts had not occurred. Repre-
17 senting a concluded investigation and a careful review of available facts while possessing an empty
18 evidentiary repository constituted an affirmative factual falsehood designed to induce forbearance.
19 Defendant made these affirmative representations knowing they were false, with the specific intent
20 to induce Plaintiff into believing that an institutional inquiry had taken place and that all offi-
21 cial records had already been cataloged and evaluated, thereby causing Plaintiff to forgo timely,
22 standard-rate preservation and retrieval of official public records. (Civ. Code, sec. 1709; *Vega v.*
23 *Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 291.)

24 5. Plaintiff seeks direct, out-of-pocket pecuniary damages under Civil Code section 3333 exceed-
25 ing the jurisdictional threshold of thirty-five thousand dollars, representing the specific differential
26 between standard contemporaneous public-records retrieval rates under one hundred dollars and
27 the extraordinary forensic data recovery, legacy magnetic media extraction, third-party subpoena,
28 and lost-earnings categories directly caused by delayed retrieval, according to proof. (*Stout v.*

1 *Turney* (1978) 22 Cal.3d 718, 725; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226,
2 1240-1241.)

3 6. Plaintiff demands a jury trial on all issues so triable.

4 **II. PARTIES**

5 7. Plaintiff Franciscus Dylan Rosario is an individual residing in California. Plaintiff was des-
6 ignated by Defendant as a third-party claimant on internal Claim No. 1004-09-1054 following a
7 vehicle-pedestrian collision in which Plaintiff was struck as a pedestrian. Plaintiff never submitted
8 a claim, never demanded an internal file be opened, and never initiated dispute procedures before
9 this action.

10 8. Defendant CSAA Insurance Exchange ("Defendant") is a California interinsurance exchange
11 that issues and administers automobile liability insurance in California.

12 9. Defendant maintains its principal place of business and Corporate Claims Operations at 3055
13 Oak Road, Walnut Creek, Contra Costa County, California 94597. Corporate Claims Opera-
14 tions at that location formulated, directed, and authorized the corporate claims policies, electronic
15 claim database protocols, and zero-disposition file closure rules executed in Claim No. 1004-09-
16 1054. Claims personnel at that location open claim files, record zero-disposition closures, and
17 maintain electronically stored information, audit trails, and claims databases. (Code Civ. Proc.,
18 sec. 2031.010 et seq.; Evid. Code, sec. 1271.)

19 10. Defendant opened, administered, generated representations for, and closed Claim No. 1004-
20 09-1054 at 3055 Oak Road, Walnut Creek.

21 11. At all times mentioned, Defendant's officers, claims handlers, supervisors, and agents, in-
22 cluding Claims Representative Sarah Rash, acted within the course and scope of their agency and
23 employment in generating and transmitting the fraudulent communications at issue. Defendant is
24 legally responsible for those acts.

25 12. Plaintiff is ignorant of the true names and capacities of Defendants sued as Does 1 through
26 50 and will amend this Complaint when those names are ascertained. Plaintiff is informed and
27 believes that each Doe defendant participated in, directed, authorized, or ratified the affirmative
28 misrepresentations concerning Claim No. 1004-09-1054, or is otherwise legally responsible for

1 the wrongful acts alleged.

2 13. Whenever this Complaint refers to "Defendant," the reference includes Defendant CSAA
3 Insurance Exchange and, as later identified, those Doe defendants who participated in or ratified
4 the acts alleged.

5 **III. JURISDICTION AND VENUE**

6 14. This Court has subject-matter jurisdiction. This is an unlimited civil action wherein the amount
7 in controversy exceeds the jurisdictional threshold of thirty-five thousand dollars, exclusive of
8 interest and costs.

9 15. This Court has personal jurisdiction over Defendant. Defendant's principal corporate offices
10 and claims administration facilities are located in Contra Costa County, where the tortious acts and
11 corporate decisions were formulated, executed, and communicated.

12 16. Venue is proper in Contra Costa County under Code of Civil Procedure section 395.5 because
13 Defendant's principal place of business is situated in Contra Costa County, and the liability and
14 tortious conduct arose at Defendant's Corporate Claims Operations located at 3055 Oak Road,
15 Walnut Creek.

16 17. The underlying vehicle-pedestrian collision of February 4, 2021, is cited solely as the external
17 historical occurrence prompting Defendant to open its internal file. This action does not seek
18 adjudication of underlying bodily injury damages, medical specials, or motor vehicle tort liability
19 from the collision itself.

20 18. This action does not allege that Defendant owed Plaintiff insurance benefits, that Defendant's
21 insured was liable for the underlying collision, that Defendant breached an insurance contract with
22 Plaintiff, or that Defendant violated statutory settlement standards under Insurance Code section
23 790.03. Plaintiff expressly concedes that Defendant owed Plaintiff no common-law duty of good
24 faith, no contractual duty, and no Insurance Code section 790.03 duty to investigate. Liability, if
25 any, is solely for common-law deceit under Civil Code sections 1709 and 1710. Having volun-
26 tarily elected to issue a positive statement of past historical fact (that an investigation had been
27 concluded and available facts carefully reviewed), Defendant assumed an independent common-
28 law duty not to affirmatively misrepresent those physical acts (*Randi W. v. Muroc Joint Unified*

1 *Sch. Dist.* (1997) 14 Cal.4th 1066, 1081). Under the express reservation and carveout articulated
2 by the California Supreme Court in *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988)
3 46 Cal.3d 287, 304-305, the abolition of direct statutory bad-faith claims by third-party claimants
4 does not preclude or immunize insurers against traditional common-law causes of action, specif-
5 ically including intentional deceit and fraudulent misrepresentation. (See also *Zhang v. Superior*
6 *Court* (2013) 57 Cal.4th 364, 377; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th
7 26, 44-45.) This independent common-law intentional tort is fully preserved. The alleged fraud
8 concerns exclusively the separate, affirmative common-law representation of historical fact regard-
9 ing what investigative work Defendant had actually performed before issuing that communication:
10 Defendant represented that it had concluded its investigation and carefully reviewed the facts and
11 circumstances of the claim. Plaintiff alleges that representation was false because Defendant's own
12 claim-file evidence shows that the investigative acts represented as completed had not occurred. In-
13 surance Code section 790.03 is identified here only as a conceded non-duty. It is not a standard of
14 care.

15 19. Plaintiff brings this action in Contra Costa County only and does not plead any other venue for
16 this Complaint.

17 **IV. [RESERVED]**

18 20. Reserved.

19 **V. FACTS**

20 21. On or about February 4, 2021, a motor vehicle-pedestrian collision occurred involving a ve-
21 hicle operated by Defendant's insured, Subhi Abdelhalim, and Plaintiff as the pedestrian. Plaintiff
22 did not file a claim, execute a claim form, demand that an internal file be opened, or solicit claims
23 administration. Defendant unilaterally opened Claim No. 1004-09-1054 as an internal administra-
24 tive file.

25 22. Defendant assigned Claim No. 1004-09-1054 as the internal identifier for that file. That number
26 identifies the file whose investigation Defendant represented as concluded.

27 23. Defendant's claims administration was an internal, proprietary operational process conducted
28 from on or about February 4, 2021, through on or about February 25, 2021, at Corporate Claims

1 Operations, 3055 Oak Road, Walnut Creek, Contra Costa County.

2 24. The electronic claim file, audit trails, and internal file-state were maintained exclusively within
3 Defendant's closed proprietary claims database. Access was strictly restricted to Defendant's per-
4 sonnel. Plaintiff was barred from access, lacked login credentials, and had no administrative
5 means to inspect internal file contents or verify whether Defendant had gathered emergency service
6 records.

7 25. File-state means the actual contents and omissions of Claim No. 1004-09-1054 at internal
8 closure, specifically including whether the file contained or lacked 911 audio, body-worn camera
9 recordings, and computer-aided dispatch records.

10 26. On February 25, 2021, Sarah Rash, Claims Representative of CSAA Insurance Exchange, sent
11 a written letter to Plaintiff concerning Claim No. 1004-09-1054. The letter is on AAA Insurance
12 letterhead showing P.O. Box 24523, Oakland, California 94623-1523, telephone 800.922.8228,
13 and fax 877.548.1610. The footer states "Policy issued by CSAA Insurance Exchange." The letter
14 is dated February 25, 2021. It is addressed to Franciscus Rosario at 835 Terry A Francois Blvd,
15 San Francisco, California 94158-2209. The reference block identifies Insured: Subhi Abdelhalim;
16 Claim No.: 1004-09-1054; Date of Loss: February 04, 2021. The greeting is "Dear Franciscus
17 Rosario:". The letter states: "We have concluded our investigation of your claim." It further
18 states: "Based on our investigation, and after carefully reviewing the facts and circumstances of
19 your claim, we have concluded that our insured is not liable for your damages resulting from
20 this loss. Therefore we must decline your claim. In addition, we dispute your right to recover
21 the amount of damages you have claimed." It further states: "Our decision is based on the facts
22 currently available." It is signed "Sincerely," then "Sarah Rash," "Claims Representative," with
23 the printed telephone number 856-209-7086. The medium is that letter. This Complaint does not
24 allege a telephone call or any other spoken statement by Sarah Rash. Walnut Creek is the claims-
25 administration location. The letterhead does not name Walnut Creek. A true and correct copy of
26 that February 25, 2021 letter is attached as Exhibit A and incorporated herein by reference.

27 27. Defendant transmitted this February 25, 2021 letter strictly as an ordinary business claims
28 communication. At that time no litigation was pending, threatened, or contemplated between the

1 parties; no demand for litigation had been made; no attorney had appeared for Plaintiff; no settle-
2 ment demand was pending; Defendant had not retained litigation counsel concerning Plaintiff; and
3 Defendant's letter did not reference any anticipated judicial proceeding. The February 25, 2021
4 communication preceded any actual or contemplated litigation by multiple years and was not made
5 in furtherance of, or in serious anticipation of, any judicial proceeding. The absolute privilege of
6 Civil Code section 47, subdivision (b), and the protections of Code of Civil Procedure section
7 425.16 therefore do not apply. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
8 Cal.4th 1232, 1251; *Flatley v. Mauro* (2006) 39 Cal.4th 299, 320; *People ex rel. Fire Ins. Ex-*
9 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)
10 69 Cal.App.4th 140, 147-148.) Defendant later described the same writing as an ordinary claims-
11 disposition communication issued in ordinary claims-investigation work, and as routine practice in
12 the insurance industry. That factual description confirms that the communication was an ordinary
13 commercial act rather than petitioning activity. Whether Civil Code section 47, subdivision (b), or
14 Code of Civil Procedure section 425.16 applies is a question of law on the 2021 facts in paragraphs
15 3 and 27, not a label Defendant may attach after the fact. No judicial proceeding between Plaintiff
16 and Defendant existed on that date.

17 28. In that February 25, 2021 communication, Defendant affirmatively represented in writing the
18 sentences quoted in paragraph 26.

19 29. Those representations were affirmative statements of historical and existing material fact re-
20 garding the actual execution and completion of an investigative review. Defendant's statements did
21 not constitute non-actionable expressions of opinion or legal argument, but rather positive, affirma-
22 tive assertions of existing historical fact regarding specific operational acts Defendant claimed to
23 have completed, including that an institutional inquiry had been physically performed. (Civ. Code,
24 sec. 1710, subd. (1); *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487-489; *Vega v. Jones, Day, Reavis*
25 *& Pogue* (2004) 121 Cal.App.4th 282, 291.)

26 30. The statements were factually false when made. At the time the letter was sent, Defendant's
27 claim file and production records contained no 911 audio, no body-worn camera recordings, no
28 CAD records, no documented request for those records, no receipt of those records, and no docu-

1 mented review of those records regarding the February 4, 2021 vehicle-pedestrian collision. The
2 official police report of that collision specifically cited 911 recordings and the existence of body-
3 worn cameras. Those report-cited materials were part of the facts then available. Representing a
4 concluded investigation and a careful review of the facts, while gathering none of those report-cited
5 records and leaving those report-cited 911, body-worn camera, and CAD records unrequested, was
6 an affirmative factual falsehood. The police report is Exhibit B.

7 31. In later civil proceedings concerning Claim No. 1004-09-1054, Defendant through counsel
8 represented both that it had reviewed the available evidence and performed an investigation, and
9 that Plaintiff had no way of knowing what investigative steps Defendant had taken and had only the
10 February 25, 2021 letter. Defendant through counsel also represented in signed writings that the
11 911 audio and related recordings had not been produced from Defendant's files, that Defendant did
12 not know their provenance, and that the materials were later supplied from Plaintiff's side. Those
13 representations are offered solely as evidentiary party admissions under Evidence Code sections
14 1220 and 1222 confirming the contents and omissions of Claim No. 1004-09-1054 on February
15 25, 2021. They are not the communications on which this Court is based. (*Park v. Board of*
16 *Trustees* (2017) 2 Cal.5th 1057, 1060; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-396; *Kimmel*
17 *v. Golan* (1990) 51 Cal.3d 202, 209-213.) Gathering the 911 recordings and body-worn camera
18 materials cited in Exhibit B was Defendant's own investigative task in performing the investigation
19 it represented as concluded. Plaintiff did not receive those records from Defendant. Plaintiff later
20 obtained them from public-safety agencies at delayed cost and served them on Defendant. Serving
21 those records did not discharge Defendant's already-represented-as-completed gather-and-review,
22 did not mean Defendant had collected them in February 2021, and does not make the letter true.

23 32. The February 25, 2021 letter was ordinary commercial claims work. While Plaintiff asserts
24 no private right of action under Insurance Code section 790.03 or California Code of Regulations,
25 title 10, section 2695.7, those provisions establish the mandatory objective baseline for claims-
26 handling practices in California (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 377). California
27 Code of Regulations, title 10, section 2695.7, subdivision (b), mandates that no insurer shall deny
28 a claim without conducting a full and thorough investigation, and section 2695.7, subdivision

1 (c), requires written disclosure of the factual basis for any denial. Having voluntarily elected to
2 issue a formal written claims disposition, Defendant assumed an independent common-law duty
3 to tell the truth after that voluntary written disposition and not to misrepresent those physical acts
4 (*Randi W. v. Muroc Joint Unified Sch. Dist.* (1997) 14 Cal.4th 1066, 1081). Defendant held
5 out its February 25, 2021 written communication as a compliant, fully investigated disposition.
6 Plaintiff cited these standards solely as an objective measure of standard commercial practice and
7 as customary-practice evidence that reliance on a completed investigation was justified, and to
8 demonstrate that Defendant's affirmative representation of a completed, careful investigation was
9 designed to simulate regulatory compliance while secretly concealing an empty claims repository.
10 The companion Request for Judicial Notice filed concurrently with this Complaint is not a Count
11 and does not supply a private right of action.

12 33. In truth and in fact, Defendant's affirmative representations that it had concluded its investi-
13 gation and had carefully reviewed the facts were false because Defendant requested, gathered, and
14 reviewed zero police-report-cited 911 recordings, body-worn camera recordings, and computer-
15 aided dispatch records. Defendant executed a pre-determined administrative zero-disposition work-
16 flow on an empty evidentiary repository of evidence it affirmatively chose not to collect, while
17 assuring Plaintiff that an exhaustive factual review had occurred.

18 34. Defendant was the sole custodian of Claim No. 1004-09-1054. Defendant's own claim file
19 and activity records established, at the time of the representation, that the identified investigative
20 acts had not occurred. On or about February 25, 2021, Defendant's claims personnel closed the
21 file twenty-one days after opening it with an internal zero-disposition code without obtaining or
22 reviewing primary public-safety records, while affirmatively assuring Plaintiff that a careful, com-
23 pleted factual investigation had occurred.

24 35. Defendant made these affirmative false statements with the intent to deceive Plaintiff, to fab-
25 ricate the appearance of an exhaustive factual review, and to induce Plaintiff to rely on that repre-
26 sentation by remaining passive and refraining from independently procuring public-safety records.

27 36. Plaintiff had no access to Defendant's exclusive claim database and possessed no adminis-
28 trative credentials, login rights, or other means of inspecting Claim No. 1004-09-1054. Nothing

1 available to Plaintiff put a reasonable person on inquiry notice that Defendant's affirmative factual
2 representation was false. Defendant had exclusive custody of Claim No. 1004-09-1054. Because
3 Defendant possessed exclusive, superior knowledge regarding its own operational acts, Plaintiff
4 had no independent legal duty to inspect, audit, or verify Defendant's representations. Plaintiff did
5 not rely on Defendant's legal opinion or non-liability conclusion. Plaintiff relied on the completed-
6 investigation representation, strictly on Defendant's positive assertion of past historical fact: that
7 an investigation had been concluded and available facts carefully reviewed. Plaintiff's reliance on
8 Defendant's positive factual statements was justifiable as a matter of law. Plaintiff had no duty to
9 inspect Defendant's internal files and justifiably relied at arm's length. (*Alliance Mortgage Co. v.*
10 *Rothwell* (1995) 10 Cal.4th 1226, 1239; *Seeger v. Odell* (1941) 18 Cal.2d 409, 414-415.)

11 37. In direct reliance upon Defendant's positive representation that an institutional factual inves-
12 tigation had been completed and all facts reviewed, Plaintiff was deceived into believing that all
13 primary evidence had been evaluated and found legally deficient. Said reliance directly induced
14 Plaintiff to alter his position by: a. Refraining from initiating timely public-records extraction
15 in February 2021; b. Indefinitely suspending and delaying pre-litigation settlement negotiations,
16 dispute resolution, and formal claims settlement demands under the reasonable belief that the fac-
17 tual record was closed; and c. Forgoing immediate administrative and legal remedies to resolve
18 the underlying claim during the active retention window of primary municipal records (*Small v.*
19 *Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 174-175). Had Defendant not falsely represented a
20 completed factual investigation, Plaintiff would have immediately retrieved the active records and
21 presented a complete, unassailable evidentiary record to initiate prompt settlement proceedings in
22 2021.

23 38. Plaintiff first discovered the internal file-state on or about April 16, 2025. On or about April
24 16, 2025, Plaintiff first discovered, from Defendant's verified discovery responses, file activity
25 logs, and production indices in related civil proceedings, that Claim No. 1004-09-1054 had been
26 closed without those records having been acquired, requested, or reviewed. The existence of public
27 911 and body-worn camera materials does not put a claimant on notice that Defendant's internal
28 file was empty. Plaintiff did not receive the public-safety records from Defendant. Plaintiff did

1 not receive 911 audio, body-worn camera recordings, or CAD records from Defendant. Earlier
2 signed writings about non-production and unknown provenance concerned production in those
3 later proceedings and did not disclose the internal contents of the Walnut Creek claim file. Because
4 Defendant exclusively possessed and controlled its internal software audit logs, Plaintiff could not
5 through reasonable diligence have discovered the false file-state earlier. Accrual of file-state facts
6 is April 16, 2025. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807-809; *Grisham v.*
7 *Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 634-635; Code Civ. Proc., sec. 338, subd. (d).)
8 39. Prior to April 16, 2025, Plaintiff possessed no notice or facts that would lead a reasonable
9 person to suspect that Defendant's representations were false or that its investigative repository
10 was empty.

11 40. Plaintiff had already located, restored, and procured the 911 audio recordings, body-worn
12 camera video, and CAD logs from municipal public-safety agencies at delayed cost and had served
13 them on Defendant. After discovering the empty file-state on or about April 16, 2025, Plaintiff
14 incurred and continued to incur the extraordinary retrieval and restoration costs pleaded in the
15 following paragraph. Service on Defendant did not constitute Defendant's 2021 investigation.

16 41. As a direct and proximate result of Defendant's affirmative deceit, the resolution and settle-
17 ment of the underlying claim were delayed by over four years, during which time primary municip-
18 al records degraded and migrated into offline magnetic archives. As a direct causal consequence
19 of the reliance, multi-year delay, and necessity to independently reconstruct the missing eviden-
20 tiary file-state, Plaintiff suffered direct out-of-pocket economic damages under Civil Code section
21 3333 consisting of: a. Extraordinary municipal agency legacy archival retrieval fees, de-archiving
22 surcharges, and third-party forensic tape extraction costs; b. Third-party subpoena fees, process-
23 server charges, and officer-production expenses incurred at San Francisco Superior Court, neces-
24 sitated solely to compel production and certification of degraded or withheld public-safety records
25 as direct Civil Code section 3333 mitigation, and not as ordinary costs of suit; c. Lost earnings
26 while reconstructing silent-witness media, including 911 audio, body-worn camera footage, and
27 computer-aided dispatch logs, that Defendant falsely represented had already been collected and
28 reviewed, according to proof; and d. Direct pecuniary loss caused by the multi-year derailment and

1 delay of formal claims settlement opportunities (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th
2 167, 174-175; *Stout v. Turney* (1978) 22 Cal.3d 718, 725).

3 42. Had Defendant not made the false representation in February 2021, Plaintiff would have
4 obtained the complete public-safety records contemporaneously for standard administrative re-
5 production fees under one hundred dollars, without incurring extraordinary third-party subpoena
6 expenses, lost earnings, or forensic restoration surcharges. Because of Defendant's fraud and
7 the resulting multi-year delay, Plaintiff incurred actual, out-of-pocket pecuniary losses exceed-
8 ing thirty-five thousand dollars to retrieve and reconstruct those same records, according to proof.
9 These specific expenditures constitute direct financial detriment under Civil Code section 3333 and
10 are recoverable as fraud-mitigation damages. (*Stout v. Turney* (1978) 22 Cal.3d 718, 725; *Alliance*
11 *Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240-1241.) Plaintiff does not seek personal
12 injury damages, bodily impairment damages, or general tort damages arising from the collision.

13 **VI. FIRST AND SOLE CAUSE OF ACTION**

14 **COMMON-LAW FRAUDULENT MISREPRESENTATION**

15 (Civ. Code, secs. 1709, 1710, subd. (1)) Against Defendant CSAA Insurance Exchange and Does
16 1 through 50

17 43. Plaintiff incorporates paragraphs 1 through 42.

18 44. Civil Code section 1709 provides that one who willfully deceives another with intent to induce
19 him to alter his position to his injury or risk is liable for any damage which he thereby suffers.

20 45. Civil Code section 1710, subdivision (1), defines deceit to include the suggestion, as a fact, of
21 that which is not true, by one who does not believe it to be true.

22 46. Defendant made affirmative representations of material fact directly to Plaintiff via the Febru-
23 ary 25, 2021 correspondence, specifically stating that Defendant had concluded an investigation
24 and had carefully reviewed the facts and circumstances of the claim. Those statements are the
25 February 25, 2021 letter's words quoted in paragraph 26.

26 47. The statements were affirmative falsehoods. At the time the statements were made, Defen-
27 dant's claim file and activity logs contained no 911 audio, no body-worn camera recordings, no
28 CAD records, no documented request for those records, no receipt of those records, and no doc-

umented review of those records, even though the official police incident report of the February 4, 2021 vehicle-pedestrian collision specifically cited 911 recordings and the existence of body-worn cameras. Defendant's later written representations that it reviewed the available evidence and performed an investigation, and that the 911 audio and related recordings were not produced from Defendant's files, are party admissions under Evidence Code sections 1220 and 1222 and are evidence of that 2021 emptiness as alleged in paragraph 31. Those later writings are not a second Count.

48. Sarah Rash acted under the direct direction, supervision, and authorization of Corporate Claims Operations management at 3055 Oak Road, Walnut Creek, whose exact names are currently unknown Doe defendants. Defendant, through those managing agents and through Claims Representative Sarah Rash, had actual corporate knowledge that the representations were false when made. Internal audit logs, electronic claim history, and production indexes for Claim No. 1004-09-1054 showed zero public-safety record requests and zero records received. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157; *Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1567.)

49. Defendant made these affirmative false statements regarding the operation, scope, and completion of its internal administrative inquiry with the specific intent to deceive Plaintiff and induce forbearance, causing Plaintiff to forgo contemporaneous, direct record acquisition and shifting the entire expense of evidence reconstruction onto Plaintiff. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 990-991; *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 291.)

50. Plaintiff reasonably and justifiably relied upon Defendant's affirmative representations of completed investigative review. Plaintiff had no access to Defendant's proprietary claims software, had no administrative credentials, and had no reason to suspect that an established insurance carrier would falsely state that an investigation had been concluded when no public records had been gathered or reviewed. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Mirkin v. Wasserman* (1993) 5 Cal.4th 1082, 1091-1092; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1239; *Seeger v. Odell* (1941) 18 Cal.2d 409, 414-415; *Boeken v. Philip Morris, Inc.* (2005) 127

1 Cal.App.4th 1640, 1666-1667.)

2 51. As a direct and proximate result of Defendant's fraud and Plaintiff's reasonable reliance,
3 Plaintiff suffered actual pecuniary injury under Civil Code section 3333 exceeding thirty-five thou-
4 sand dollars, according to proof. Those injuries include the out-of-pocket extra retrieval, forensic
5 restoration, third-party subpoena mitigation, and lost-earnings categories alleged in paragraphs 41
6 and 42, and are not restated here. (*Stout v. Turney* (1978) 22 Cal.3d 718, 725; *Alliance Mortgage*
7 *Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240-1241.) Plaintiff does not seek policy proceeds,
8 statutory bad-faith remedies, or collision damages. Plaintiff seeks only out-of-pocket extra re-
9 trieval, restoration, and mitigation costs under Civil Code section 3333 caused by forbearance,
10 including the categories alleged in paragraphs 41 and 42.

11 52. The action is timely under Code of Civil Procedure section 338, subdivision (d). Plaintiff
12 discovered the facts constituting the fraud on April 16, 2025, when the inventory showed the 2021
13 file never held the records. Plaintiff did not discover those internal file-state facts from Defendant's
14 earlier non-production statements, which did not reveal Claim No. 1004-09-1054. Plaintiff never
15 received the public-safety records from Defendant. Plaintiff could not through reasonable diligence
16 have discovered those internal file-state facts earlier because Defendant exclusively possessed and
17 controlled the claim file and its internal activity records. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005)
18 35 Cal.4th 797, 807-809; *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 634-635.)

19 53. Defendant's fraudulent misrepresentations were formulated, authorized, and ratified by De-
20 fendant's corporate claims supervisors and managing agents at its Walnut Creek Corporate Claims
21 Operations, pursuant to an institutional policy of executing zero-disposition file closures on empty
22 repositories while falsely representing to third-party claimants that an investigation had been com-
23 pleted. Said conduct was committed willfully, maliciously, and with fraudulent intent under Civil
24 Code section 3294, justifying an award of exemplary and punitive damages. (*White v. Ultramar,*
25 *Inc.* (1999) 21 Cal.4th 563, 572-574.)

26 **VII. PRAYER FOR RELIEF**

27 WHEREFORE, Plaintiff prays for judgment against Defendant as follows:

28 1. For compensatory and direct pecuniary damages exceeding thirty-five thousand dollars, accord-

1 ing to proof;

2 2. For punitive and exemplary damages pursuant to Civil Code section 3294 according to proof;

3 3. For pre-judgment interest accrued on the out-of-pocket reconstruction expenditures during the
4 delay period pursuant to Civil Code sections 3287 and 3288, including forensic extraction and
5 mitigation outlays, and for post-judgment interest as permitted by law;

6 4. For costs of suit incurred herein; and

7 5. For such other and further relief as the Court deems just and proper.

8 Dated: August 24, 2026

9 

10 Franciscus Dylan Rosario

11 Plaintiff in propria persona

12 **VERIFICATION**

13 (Code Civ. Proc., secs. 446, 2015.5)

14 I, Franciscus Dylan Rosario, declare:

15 I am the Plaintiff in this action. I have read the foregoing Verified Complaint for Common-Law
16 Fraudulent Misrepresentation and know its contents. The matters stated in it are true of my own
17 knowledge except as to those matters stated on information and belief, and as to those matters I
18 believe them to be true.

19 I declare under penalty of perjury under the laws of the State of California that the foregoing is
20 true and correct. This verification is executed pursuant to Code of Civil Procedure sections 446
21 and 2015.5.

22 Executed on August 24, 2026, at Rohnert Park, California.

23 

EXHIBIT B

NOT TO BE PUBLISHED IN OFFICIAL REPORTS

California Rules of Court, rule 8.1115(a), prohibits courts and parties from citing or relying on opinions not certified for publication or ordered published, except as specified by rule 8.1115(b). This opinion has not been certified for publication or ordered published for purposes of rule 8.1115.

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT

DIVISION THREE

FRANCISCUS DYLAN ROSARIO,

Plaintiff and Appellant,

v.

SUBHI ABDELHALIM et al.,

Defendants and Respondents.

A173827

(City and County of San Francisco
Super. Ct. No. CGC-21-594102)

Franciscus Dylan Rosario sued Subhi Abdelhalim and Sonoma Liquor, alleging Abdelhalim caused him injury by negligently driving a vehicle; a jury concluded to the contrary. On appeal, Rosario argues the trial court erred by answering a jury question during its deliberations. We affirm.

BACKGROUND

In July 2021, Rosario sued Abdelhalim. Rosario alleged Abdelhalim negligently struck him and his scooter while Abdelhalim was making a right turn in his vehicle.

At trial, Abdelhalim testified his truck was moving about five miles per hour as it turned. Before the turn, he looked in the side view mirror and in front of him and did not see any pedestrians, scooters, or bicyclists. He did not feel any impact. After the turn, he pulled over because he heard someone yelling for help. When he exited the vehicle, he noticed Rosario yelling at him. Abdelhalim called 911. He did not see any marks on the vehicle. A

police officer testified the scooter and vehicle sustained no damage, and Rosario caused the collision by driving the scooter against the flow of traffic.

During the jury's deliberations, it asked the trial court, "in considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code sections 22107 and 21804(a)[?]" (Italics and some capitalizations omitted.) With the agreement of the parties, the court responded, "You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions." (Italics omitted.) After the court issued its response to the jury, Rosario moved for a mistrial because the jury mentioned the sections. The court denied the motion. The jury concluded Abdelhalim was not negligent.¹

DISCUSSION

Relying on Code of Civil Procedure section 614, Rosario contends the trial court erred by not instructing the jury on Vehicle Code section 22107 after it submitted its question. He forfeited the contention.

Ordinarily, a "civil litigant must propose complete instructions in accordance with his or her theory of the litigation and a trial court is not 'obligated to seek out theories [a party] might have advanced, or to articulate for him that which he has left unspoken.'" (*Hurley v. Department of Parks & Recreation* (2018) 20 Cal.App.5th 634, 655.) But "[t]rial courts are duty bound to give supplemental instructions if additional guidance is necessary to give the jury "a full and complete understanding of the law applicable to the

¹ We grant Rosario's unopposed motion for judicial notice. We deny as unnecessary his motion to disregard or strike passages of the respondent's brief and his application to file a reply brief with respect to that motion. To the extent Abdelhalim's brief contains factual assertions unsupported with record citations, we disregard them. (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520.)

facts.” ’ ’ (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289; Code Civ. Proc., § 614.) The “failure to provide legal instructions in response to a jury’s question may be reversible error under certain circumstances.” (*Eng v. Brown* (2018) 21 Cal.App.5th 675, 706, fn. 9.) For example, when “original instructions are inadequate, and the jury asks questions indicating their confusion and need for further explanation, failure to give proper additional instructions is usually reversible error.” (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.) “ ‘An appellate court applies the abuse of discretion standard of review to any decision by a trial court to instruct, or not to instruct, in its exercise of its supervision over a deliberating jury.’ ” (*People v. Fleming* (2018) 27 Cal.App.5th 754, 765.)

Rosario forfeited his claim by agreeing to the trial court’s response to the jury’s question. (*People v. Bohana* (2000) 84 Cal.App.4th 360, 373 [“[w]here . . . appellant consents to the trial court’s response to jury questions during deliberations, any claim of error with respect thereto is waived”].) Indeed, his position was that the Vehicle Code was “immaterial,” and the jury’s consideration of it would be grounds for a mistrial. As the case law he cites indicates, he cannot now claim that response was error. (*Ibid.*; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212 [“Under the doctrine of invited error, when a party by its own conduct induces the commission of error, it may not claim on appeal that the judgment should be reversed because of that error”]; *Stevens v. Owens-Corning Fiberglas Corp.* (1996) 49 Cal.App.4th 1645, 1653 [invited error doctrine “bars an appellant from attacking a verdict that resulted from a jury instruction given at the appellant’s request”].))

Rosario also advances two other arguments but indicates he does so “solely to defeat harmless claims.” Given our conclusion above, we need

not evaluate whether the alleged error was harmless. (*People v. Mora and Rangel* (2018) 5 Cal.5th 442, 505.)

DISPOSITION

The judgment is affirmed. Abdelhalim is to recover his costs on appeal. (Cal. Rules of Court, rule 8.278(a)(2).)

RODRÍGUEZ, J.

WE CONCUR:

FUJISAKI, Acting P. J.

PETROU, J.

A173827; *Rosario v. Abdelhalim et al.*

EXHIBIT C

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Tuesday, September 22, 2026 8:25 AM
To: Morrissey, Rebekah
Cc: Tyler O'Connell; Chad S. Tapp; Priya Navaratnasingham; Alberto Reyna; Murphy, Catherine; investigations@insurance.ca.gov; Dylan Rosario
Subject: Re: [EXTERNAL] Commentary: WAIVER? Really?
Attachments: 2026-09-22-DEFENSE-MISCONDUCT-NARRATIVE-DRAFT.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

External email

Rebecca and Tyler and Chad and Priya and Alberto,

You know, I always tend to think that commentary can be taken with a little bit of a lighthearted tongue in cheek fashion, but then when you look at real facts, especially after what the entire group of you did, one just finds themselves disgusted.

I wanted to address this claim that there was ever any unprofessionalism on my part in this case.

That kind of gaslighting accusation bullshit doesn't ring with me, nor does it ring with the actual facts on the record, so I've put together a list: Rebecca and Tyler, so that way you actually see exactly who the vexatious individual who has been, which is CSAA, and its panel counsel. Unfortunately, the entire group of you are completely blind to your own actions, which is typical of many of you who are acting under obvious sociopathic corporate agendas.

The only way you will actually see it is if you look in the mirror.

Here is an exhaustive public DOCKET register of all of the illegal and unprofessional gamesmanship that the entire group of you pulled in this matter.

I have the transaction numbers. I have your own words. And I have the results of what the court relied upon when each of you made unprofessional statements, or outright illegal statements, compounded by your lies and perjury to the court.

So before the whole group of you starts gaslighting me, look at this list and see exactly who the person and the group doing the unprofessional shit around here actually are. Generally, it is the person who is quite guilty of something who uses an accusatory claim as a defense. It is often the guilty party who starts blaming the other for what they themselves have done, especially when they have to face the truth of their own actions and the lies they make on a public forum.

Abdelhalim is a criminal who failed to report a collision with a pedestrian to the police at the scene when they arrived, after admitting in 911 calls that he had struck a pedestrian.

CSAA helped him cover that up through a series of legal maneuvers, illegal statements to the court, and unprofessional gamesmanship with the tribunal. Those are facts, because this register shows every single one of your lies and every single one of your unprofessional actions. So the whole group of you trying to lecture me on unprofessionalism is a fucking joke.

You should find this register enlightening. Every single thing you have done on this case, and this group of cases, is being published in real time to the public. It is only a matter of time before this entire charade collapses on your heads.

I do not know why the whole group of you cannot be ethical and address your own organization's failure rather than doubling down on the denial, delay, and defense continuum you have been running since the first moment your client hit me with his fucking truck.

So you know what? I do not care how you think I do not respect you. No, I do not. I do not respect any of you. The entire group of you are either criminals, fraudulent attorneys, or an unethical and unprofessional pack of retards who continue to propagate a lie from a man who could not tell the truth if he tried.

As for harassing, I am perfectly legally allowed to pursue any cause of action that I have the merits for, secondly, it's the entire group of you that are unprofessional, as for inappropriate, this is a personal opinion and nobody cares about your personal opinion, Rebecca. Only the facts matter. I thought you should know this. Then again, looking at this register, the entire group of you don't even know how to practice law. Or you're so hell bent on winning that you're willing to violate the laws and your own professional standards. so don't even start with me with professionalism. What a joke.

Regards,

Frank Rosario

On Mon, Sep 21, 2026 at 8:22 PM Morrissey, Rebekah <Rebekah.Morrissey@csaa.com> wrote:

Mr. Rosario-My name is spelled Rebekah. Please give me, and all other counsel, the basic respect of spelling our names correctly. You seem nearly incapable of doing so and blatantly misspell our names with malice and insult intended.

These actions are harassing, unprofessional, and inappropriate.

Rebekah A. Morrissey | Attorney

Koyama & Costello

P.O. Box 24508 | Oakland, CA 94623-1508

Direct: [916-480-1063](tel:916-480-1063) | Cell: [916-336-6430](tel:916-336-6430) | Office: [916-481-5330](tel:916-481-5330) | Fax: [916-481-0990](tel:916-481-0990)

For courier deliveries only:

[2365 Iron Point Road, Suite 170, Folsom, California 95630-8713](#)

A law firm consisting of employees of CSAA Insurance Group

=====

Narrative Chronology of Defense Misconduct: February 4, 2021 to September 22, 2026

Part I. The scene: February 4, 2021

001. 2021-02-04 | TX none (SFPD Report 210079556) | Subhi Abdelhalim

Unprofessional. The insured driver struck a person and then spent the next five years denying contact that his own 911 call admitted.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. Five years of denial began on the pavement.

What they did. White Ford Transit van, southbound Fifth Street turning west onto Tehama, San Francisco, approximately 3:00 p.m.; plaintiff struck. SFPD Report No. 210079556, Officer Fernandez #1118.

002. 2021-02-04 | TX none (911 audio; later authenticated RT8) | Abdelhalim

Illegal and unprofessional. The defendant's own voice admitted the impact he later denied to police, in deposition, and at trial.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The later no-impact story had to erase the driver's own voice.

What they did. On the 911 recording (later authenticated at trial, RT8) the driver says in substance "I barely hit him with anything" and "BOOM! I just hit him. HIT HIM. There was barely anything."

003. 2021-02-04 | TX none (911 / SFPD Report 210079556) | Abdelhalim

Illegal and unprofessional. A driver who leaves an injured person, even briefly, breaches the first duty the Vehicle Code imposes.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The first duty the Vehicle Code imposes was already broken before any lawyer appeared.

What they did. The driver moved the van away from the injured plaintiff and returned only after a passerby's 911 call reported "a hit and run ... nobody helping him." At deposition he denied leaving ("I never left") and explained the move as "I pulled my vehicle on the right to the street, so -- I don't want to block nobody's traffic" (Depo. 17:22-23); see item 026A on why the traffic explanation fails. The legal defect: hit-and-run duty (Veh. Code 20001) as pleaded.

004. 2021-02-04 | TX none (scene conduct; later pleaded) | Abdelhalim

Unprofessional. Offering pocket money to an injured person on the pavement is consciousness of fault, not aid.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. After returning, the driver offered the injured plaintiff a five-dollar bill.

005. 2021-02-04 | TX none (SFPD Report 210079556) | Abdelhalim

Illegal and unprofessional. Minutes after telling 911 he hit the man, the driver told the investigating officer he felt no impact, and that false account became the police report's conclusion.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The police report adopted the no-impact account and assigned fault to the injured party.

What they did. Per the Traffic Collision Report, the driver told Officer Fernandez he checked his mirror, completed the turn, did not feel any impact, did not see the plaintiff, and that the van had no damage. The report then assigned fault to plaintiff for riding against traffic (Veh. Code 21651(b) framing). The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); false-report risk label only (Penal Code 148.5); not a criminal charge in this audit.

006. 2021-02-04 | TX none (Claim 1004-09-1054 opened) | Abdelhalim

Unprofessional. The claim file was seeded from the start with the insured's version alone.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The claim file was born with only the insured's version in it.

What they did. The driver testified he "called AAA right away to claim" and received a claim number; CSAA opened Claim No. 1004-09-1054 on the insured's account.

Part II. The insurer's twenty-one days: February 4 to February 25, 2021, and the cover that followed

007. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA claims personnel

Illegal and unprofessional. An insurer that decides fault without ever speaking to the injured party has not investigated.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. CSAA did not contact plaintiff for his account before denying liability. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

008. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA

Illegal and unprofessional. The insurer did not even lock down its own insured's story before adopting it.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. As pleaded, CSAA did not take a recorded or under-oath statement from Abdelhalim; the insured himself was unsure at deposition whether he gave one. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

009. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA

Illegal and unprofessional. The single most important piece of liability evidence sat one public-records request away and CSAA never asked for it.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. No request to SFPD or the Department of Emergency Management for the 911 recording that contained the insured's admission. Plaintiff's counsel later obtained the same recording by routine request on May 12, 2021. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

010. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA

Illegal and unprofessional. An eyewitness on police video contradicted the insured and the insurer never looked.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. No BWC in the claim file, including Officer Thompson's footage of an eyewitness saying "The man in the van hit the guy." The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

011. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA

Illegal and unprofessional. The insurer skipped the index that would have led it to every other record.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. No dispatch (CAD) pull despite the report's linkage to dispatch incident numbers. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

012. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA

Illegal and unprofessional. Every ordinary step of a liability investigation was skipped.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. As pleaded in the RFA set, none of these steps were taken before denial. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

013. 2021-02 (date not OCR-legible) | TX none (Metro Reporting Bureau vendor order) | CSAA / AAA (attn. Tonyia McConnaughay)

Illegal and unprofessional. The insurer knew where the evidence was indexed and stopped at the summary that favored its insured.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. CSAA ordered the police report through a vendor, showing awareness of Report No. 210079556, but never pulled the 911, BWC, or CAD that the report indexed. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

014. 2021-02-25 | TX none (Claim 1004-09-1054 zero disposition) | CSAA

Illegal and unprofessional. CSAA closed the file at zero dollars before the file contained anything to evaluate.

Severity. High. A licensed insurer certified a finished investigation and a zero-dollar denial on an empty file.

Consequence. The claim closed at zero dollars on day 21.

What they did. Claim closed twenty-one days after opening on what the Contra Costa complaint calls a pre-determined administrative zero-disposition workflow run on an empty evidentiary repository. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

015. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | Sarah Rash, Claims Representative, CSAA

Illegal and unprofessional. The letter represented a completed, careful investigation that had never gathered the 911 call, the video, or the dispatch record.

Severity. High. A licensed insurer certified a finished investigation and a zero-dollar denial on an empty file.

Consequence. The injured party was told the insured was not liable. That letter became the official story for four years.

What they did. Letter to plaintiff, Claim 1004-09-1054: "We have concluded our investigation of your claim. Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed." The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); deceit / concealment (Civ. Code 1709, 1710).

016. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | Rash / CSAA

Illegal and unprofessional. The letter marketed finality to a layperson while quietly hedging that it had not looked at everything.

Severity. High. A licensed insurer certified a finished investigation and a zero-dollar denial on an empty file.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The same letter invites "additional information," while declaring the investigation concluded and the insured not liable. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); deceit / concealment (Civ. Code 1709, 1710).

017. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | CSAA

Illegal and unprofessional. What the letter omitted was the truth about how little it rested on.

Severity. High. A licensed insurer certified a finished investigation and a zero-dollar denial on an empty file.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The letter did not disclose that no 911, BWC, or CAD had been requested or reviewed, and listed no facts actually reviewed. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); deceit / concealment (Civ. Code 1709, 1710).

018. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | CSAA

Illegal and unprofessional. The insurer paid nothing on a claim its own insured had confessed to on tape.

Severity. High. A licensed insurer certified a finished investigation and a zero-dollar denial on an empty file.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Zero-dollar disposition with no offer, though the insured's own 911 admission made liability reasonably clear had it been retrieved. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

019. 2021-02-25 onward | TX none (Claim 1004-09-1054; continuing) | CSAA

Illegal and unprofessional. A denial engineered to make the claimant stop looking is a denial engineered to destroy his evidence by lapse of time.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. Public-records clocks ran while the claimant was told the investigation was already done.

What they did. Pled intent: to make plaintiff believe primary evidence had been evaluated so he would not extract public records within municipal retention windows or press settlement. The legal defect: deceit / concealment (Civ. Code 1709, 1710).

020. 2021-02-25 to 2025-04-16 | TX none (Claim 1004-09-1054; continuing through 2025-04-16) | CSAA

Illegal and unprofessional. An insurer that learns its denial letter was hollow has a duty to say so, and CSAA never did.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. CSAA never corrected the "concluded investigation" representation; plaintiff pleads he first learned the file was empty on April 16, 2025.

021. 2021-02-25 onward | TX none (Claim 1004-09-1054; continuing) | CSAA

Illegal and unprofessional. The insurer compelled four years of litigation to prove facts that were sitting in a public-records queue.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The only way to authenticate the 911 call and the bodycam was to sue.

What they did. The denial pushed plaintiff into a lawsuit to authenticate the 911, BWC, and CAD that CSAA's letter implied had already been considered. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

Part III. The personal-injury case before trial: July 2021 to December 2024

022. 2021-07-27 | TX none (Complaint CGC-21-594102 e-filed 2021-07-27) | Milestone

Milestone. Plaintiff (then represented by Dolan Law Firm) sues Abdelhalim. The five-page complaint pleads Veh. Code 22107 and 21804(a); the defense later turns this pleading into its Exhibit 500.

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. Plaintiff (then represented by Dolan Law Firm) sues Abdelhalim. The five-page complaint pleads Veh. Code 22107 and 21804(a); the defense later turns this pleading into its Exhibit 500.

023. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:45-48) | Michael R. Chambers, Carbone, Smith & Koyama

Illegal and unprofessional. From the first responsive pleading, the defense was the insurer's defense, and it denied contact that the insured had already confessed on tape.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Answer to Complaint, dated September 13, 2021, electronically filed September 14, 2021 (CT 1:45-48). Caption block: MICHAEL.CHAMBERS@CSAA.COM. CCP 431.30 general denial of every allegation, including the pleaded Veh. Code 22107 and 21804(a) duties, plus six affirmative defenses. The legal defect: The general denial was filed after CSAA had closed the claim on an empty file (items 007-017) and without retrieving the insured's 911 admission. A denial of liability offered without the investigation 10 CCR 2695.7(d) requires is a false or reckless factual contention under CCP 128.7(b)(3) and CRPC 3.1 as later pleaded.

023A. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:46 Fifth Affirmative Defense) | Chambers

Illegal and unprofessional. The first defense on the merits was a stigmatizing lie about the plaintiff, not a statement of the insured's own 911 words.

Severity. High. A public court paper accused the injured party of a DUI conviction he does not have and used that accusation to cut damages.

Consequence. The injured party's credibility was attacked in a public file before any jury was seated, and non-economic damages were targeted for a statutory cap that does not apply.

What they did. Fifth Affirmative Defense (CT 1:46 para. 6), filed under Chambers' signature: "Defendant is informed and believes, and thereon alleges, that at the time of the incident which is the subject of this action plaintiff was not insured as required by the state's financial responsibility laws, and/or that plaintiff was driving in violation of Vehicle Code section 23152 and/or 23153 for which violation(s) plaintiff was convicted. Therefore, plaintiff's recovery, if any, must be limited to economic damages pursuant to Civil Code section 3333.4." Plaintiff has no arrest, charge, or conviction under Veh. Code 23152 or 23153. The allegation is objectively verifiable by a docket, DOJ, or DMV pull

and was not supported by any such record. The legal defect: A public court paper accused the injured party of a DUI conviction he does not have, and used that accusation to cut non-economic damages. CRPC 3.1, 3.3(a)(1), 8.4(c); Bus. & Prof. Code 6068(d), 6106, 6128(a); CCP 128.7(b)(2)-(3). Civ. Code 3333.4 does not apply to a pedestrian or other person who was not driving a motor vehicle while uninsured or while convicted of DUI.

023B. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:45-46) | Chambers

Illegal and unprofessional. Counsel ignored the insurer's own insured (the 911 caller) and filled the Answer with stock defenses instead of the recorded admission.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. First through Fourth and Sixth defenses: comparative negligence; failure to mitigate; other-persons' fault (Civ. Code 1431.2 / 1432); statutes of limitation including CCP 335.1, 337, 338, and 339; and failure to state a cause of action. None of these defenses identifies a fact found in a 911, BWC, or CAD pull, because CSAA had not made those pulls (items 007-014). The legal defect: Affirmative defenses offered without factual investigation after a 21-day zero disposition are the pleading face of the same empty-file denial. CRPC 3.1; CCP 128.7(b)(3); 10 CCR 2695.7(d) as standard of care.

024. 2021-12 | TX none (Form Interrogatory responses Dec 2021; later Ex. 501B) | Chambers / CSK

Unprofessional. Early, unpolished pro-forma responses were held for four years and used to impeach the injured party on a point that did not decide fault.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Plaintiff's December 2021 Form Interrogatory responses were preserved and later admitted by PSA as Exhibit 501B and argued in closing as scooter admissions.

025. 2022-08-18 | TX none (production at Rosario deposition 2022-08-18) | Chambers / CSK

Illegal and unprofessional. The defense possessed the silent-witness evidence from August 2022 and never said a word against it until it was convenient to claim it had never arrived.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Dolan Law Firm served the 911 recording and related materials; Chambers attended plaintiff's deposition the same day. No written authenticity challenge followed. Jeremy Jessup later swore to this production under oath (Feb 18, 2025). The legal defect: fairness / suppression (CRPC 3.4).

026. 2022-09-30 | TX none (Abdelhalim deposition 2022-09-30) | Abdelhalim (with Chambers present)

Illegal and unprofessional. The insured swore to a story his own recorded voice contradicted, and his lawyer let it stand.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The no-impact story was locked under oath, with the confession already in counsel's file.

What they did. Sworn (Depo. 25:9-13): "There's no part of my van, no impact, no anything. Because it's -- what I telling you that -- the police officer, he check my van, completely. ... There is nothing impact my van -- being touched." Sworn (Depo. 18:16-19): "The guy claim you hit him. I said, Well, thank God -- thank God I'm a good citizen. I don't -- I never left." Sworn (Depo. 25:20-21): he told police "there's somebody laying on the sidewalk and he's screaming and yelling. He thinks he got hit." Chambers sat as counsel of record and did not correct the testimony against the 911 recording already in the defense file (item 025). The legal defect: A party admission already in counsel's file (Evid. Code 1220) was left standing as sworn no-impact testimony. Penal Code 118 (risk label only); CRPC 3.3(a)(3) (lawyer's duty regarding false evidence).

026A. 2022-09-30 | TX none (Abdelhalim deposition 2022-09-30) | Abdelhalim (with Chambers present)

Illegal and unprofessional. The insured swore that traffic forced him to move his van away from the man he had just struck, on an afternoon when San Francisco's streets were carrying roughly a third less traffic than normal and the same district's traffic enforcement had collapsed by four fifths.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Sworn (Depo. 17, 21-22): traffic forced him to pull the van off the injured man; in the same passage he swore the street was clear. February 2021 public data show city VMT down about a third from 2019, speeds up, and Southern District traffic enforcement down about four fifths. The collision record notes no visual obstruction and that both vehicles were moved before officers arrived. The passerby 911 call reported no vehicle and nobody helping him.

027. 2022-12-09 | TX none (CCP 998 served 2022-12-09; expired unaccepted) | Abdelhalim / CSAA (through Chambers)

Unprofessional. With a recorded admission of impact in its own file, the insurer let a policy-limits-range offer lapse and forced trial.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Dolan served a \$500,000 statutory offer; it expired unaccepted.

028. 2022-08 to 2023-05 | TX none (file custody 2022-08 to 2023-05) | Chambers / CSK

Illegal and unprofessional. Silence for two and a half years is not surprise; it is knowledge.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Continuous custody of the defense file containing the 911, BWC, and CAD materials, with no written objection to authenticity or provenance. The legal defect: fairness / suppression (CRPC 3.4).

028A. 2023-03-10 | TX none (Fernandez deposition 2023-03-10) | Chambers (examining Officer Fernandez)

Illegal and unprofessional. Defense counsel sat through a police officer confirming four bodycam videos and then handed forward a file from which that fact later disappeared.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Videoconference deposition of Officer David Fernandez. Appearances: Jeremy Jessup for plaintiff; Michael R. Chambers (CSK, michael.chambers@csaa.com) for Abdelhalim. Fernandez testified the bodycam footage "still [is] available," that his video plus "at least three more" existed, and that other officers' cameras likely captured the statements (Fernandez Depo. 15:4-22). Chambers thus heard, under oath, that the silent-witness video still existed, eight months after Dolan had already produced 911 / BWC / CAD to him (item 025). Successor counsel later told the court they had "no idea where this 911 call ... came from" (item 036). The legal defect: Knowledge of existing BWC, combined with later "unknown origin" motions, is the knowledge element for CRPC 3.3(a)(1) and Bus. & Prof. Code 6068(d) as later pleaded against the successor firm; Chambers' duty was to keep the file accurate (CRPC 1.16(d), 3.4(a)).

029. 2023-05-04 | TX 69953800 (Substitution of Attorney) | Chambers / CSK to PSA (Substitution Tx 69953800)

Illegal and unprofessional. A file handoff that strips out what the other side already produced is how a lie gets laundered into ignorance.

Severity. High. A false possession story was offered to a tribunal that then excluded evidence and denied time.

Consequence. Successor counsel could later say the production was news to them.

What they did. Substitution of attorney; plaintiff pleads the production history of the silent-witness materials was not conveyed, manufacturing the successor firm's later "news to me." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded); fairness / suppression (CRPC 3.4).

029A. 2023-03-23 (hearing) / first continuance | TX 77801626 / 77801637 (stipulated ex parte to continue trial) | Chambers era into PSA era

Unprofessional. The defense used plaintiff's medical condition as the reason to delay, then used the same medical file as a reason to exclude the injury at trial.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Stipulated ex parte to continue the first trial date. The supporting memorandum states this is "the first continuance of this trial date" and that the parties need more discovery, including "the parties' respective medical evaluations of Plaintiff," because "the reasonable value of his future medical care" is "unknown." Defense later claimed it had never received medical information (items 037A, 046A).

029B. 2023-09-20 / 09-21 | TX none (ex parte e-filed 2023-09-20; order 2023-09-21) | Reyna / PSA

Unprofessional. A second delay framed as a need for medical discovery, followed by MILs that the medical evidence had not been produced.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Notice of Ex Parte Application filed September 20, 2023; order granting September 21, 2023 (CT chronological index). Grounds: wage-loss / AI discovery, "Plaintiff has treated with various physicians ... whose depositions have yet to be taken," and "pre-incident medical records, billing records." The memorandum admits "there has been only one previous trial continuance."

029C. 2024-01-11 | TX none (motion e-filed 2024-01-11) | Reyna / PSA

Unprofessional. A third reset of the trial clock after two years of silent custody of the confession tape.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Defendant's Notice of Motion and Motion for an Order to Continue Trial Date Pursuant to Joint Stipulation, with Declaration of Alberto Reyna, filed January 11, 2024 (CT chronological index). Continues the delay into 2024 while the 911 / BWC file remained in defense custody without an authenticity challenge (item 028).

030. 2024-02-01 | TX none (Complex CA1147102-021 to SFPD) | Alberto Reyna, PSA

Illegal and unprofessional. The lawyer who subpoenaed the 911 call by name later told the court he was not sure what recording plaintiff meant.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Reyna signed Complex Deposition Subpoena Order CA1147102-021 to SFPD demanding the "9-1-1 CALL" and "ANY AND ALL VIDEO RECORDINGS FROM BODY-WORN CAMERAS." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded).

031. 2024-02-26 (approx.) | TX none (document demand approx. 2024-02-26) | Reyna / PSA

Illegal and unprofessional. The defense demanded the records in February 2024 and disclaimed knowledge of them in January 2025.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Request for all records "stored in any format" regarding the collision, encompassing 911, CAD, and BWC.

032. 2024-08-28 | TX none (pro per settlement letter 2024-08-28) | Context

Unprofessional. A second documented opportunity to resolve the case on the strength of the insured's own admission was declined.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Plaintiff, now pro per, sends PSA (Yareli Ramos) a settlement demand invoking the expired 998 and insurer exposure. No acceptance followed.

033. 2024-09-09 (approx.) | TX none (CAD identifiers transmitted approx. 2024-09-09) | Reyna (recipient)

Illegal and unprofessional. Four months before the "unknown origin" motion, the defense held the dispatch identifiers that established origin.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Plaintiff transmits CAD identifiers linking the 911, dispatch, and police materials. The legal defect: paper certified without the required factual or legal support (CCP 128.7(b)).

034. 2024-09-05 / 09-17 | TX none (ex parte e-filed 2024-09-05; order 2024-09-17) | Reyna / PSA

Illegal and unprofessional. Delay served the defense while the plaintiff's evidence sat under a cloud the defense had created.

Severity. High. A false possession story was offered to a tribunal that then excluded evidence and denied time.

Consequence. The January 2025 trial window opened on a four-continuance clock, and the non-production MILs followed.

What they did. Ex parte application filed September 5, 2024; Global Statement of Facts later recites: "On September 17, 2024, pursuant to an ex parte application and the parties' joint stipulation, this Court granted an Order continuing the trial date to January 27, 2025, with all trial deadlines, discovery related deadlines, including both expert and percipient witness discovery deadlines, to be based upon the new trial date." Four months later the same firm filed MILs 6 and 17 claiming the 911 call and recorded materials were unknown and not produced (items 035-036). The legal defect: Delay after constructive and actual possession of the silent-witness file, used to tee up a false non-production motion, is the knowledge-plus-use element for CRPC 3.3(a)(1) and CCP 128.7(b) as later pleaded.

Part IV. The 2025 pretrial motions: the "news to me" sequence

035. 2025-01-17 | TX 80936030 (MIL 6) | Priya D. Navaratnasingham, PSA

Illegal and unprofessional. A sworn-signature motion told the court the evidence had not been produced when the defense file had held it since 2022.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The court was asked to keep recorded materials from the jury on a false non-production predicate.

What they did. MIL 6 (FSX Tx 80936030; CT 1:149-151) represented that the recorded materials "were not produced in discovery." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); fairness / suppression (CRPC 3.4).

036. 2025-01-17 | TX 80936053 (MIL 17) | Navaratnasingham / PSA

Illegal and unprofessional. The firm whose associate had subpoenaed the 911 call by name eleven months earlier told the court no proper subpoena existed.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The confession tape was framed as eleventh-hour and unknown, eleven months after the same firm subpoenaed it by name.

What they did. MIL 17 (FSX Tx 80936053; CT 1:238) stated the materials were "produced at the eleventh hour"; "Defendant has no idea where this 911 call log or audio recording came from"; "It does not appear that either the log or the recording were obtained via proper subpoena process." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded).

037. 2025-01-17 | TX 80936025 (MIL 4) | Navaratnasingham

Illegal and unprofessional. The defense moved to keep the jury from hearing the injury while separately moving to keep it from hearing the impact.

Severity. High. The same empty 2021 medical file was restated as a reason to keep the injury from the jury.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. MIL 4 sought to bar plaintiff's brain-injury evidence for want of expert designation. The legal defect: fairness / suppression (CRPC 3.4).

038. 2025-01-17 | TX 80936017 (Global Statement); MIL 1 TX 80936019 | Navaratnasingham

Illegal and unprofessional. Nineteen motions in limine built a wall around the one recording that decided the case.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. MIL 1 later used for categorical exclusion posture on the 911 transcript at the January 27 hearing. The legal defect: fairness / suppression (CRPC 3.4).

037A. 2025-01-17 | TX 80936019 / 80936021 / 80936023 / 80936045 / 80936048 / 80936055 (MILs 1, 2, 3, 13, 14, 18) | Navaratnasingham / PSA

Illegal and unprofessional. The defense blocked the jury from the injury while claiming it had never seen the medical file its own investigator never obtained.

Severity. High. The same empty 2021 medical file was restated as a reason to keep the injury from the jury.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The same January 17 package that denied receipt of police recordings also denied receipt or usability of medical proof: - MIL 1: exclude all expert or non-retained expert testimony because "Plaintiff has not served a designation" (expert exchange date December 9, 2024, after the September 17 continuance). - MIL 2: preclude any testimony or argument that plaintiff's injuries were caused by defendant; "Plaintiff has already failed to meet his burden in proving causation." - MIL 3: preclude future medical specials because "Plaintiff has failed to provide any admissible evidence that he will even require future medical treatment." - MIL 13: exclude special damages "not identified in discovery" and "documents and other evidence that he has failed to produce to Defendant." - MIL 14: preclude future medical treatment. - MIL 18: preclude past and future earnings; "Plaintiff has not produced any admissible evidence" and "has not designated any medical or vocational rehabilitation expert." CSAA's own February 2021 file never pulled medical records (item 012). The 2023-2024 continuance papers had already recited treating physicians, billing records, and medical evaluations (items 029A-029B). The "never received medical information" posture is therefore the same empty-investigation fact, restated as a trial exclusion. The legal defect: Using a "not produced" / "no medical evidence" predicate to strip causation and damages after the insurer skipped the medical pull, and after continuance papers admitted treaters existed, is CRPC 3.3(a)(1) and 3.4(a) as pleaded; CCP 128.7(b)(3).

039. 2025-01-27 | TX none (hearing 2025-01-27; minutes on CT index) | Navaratnasingham

Illegal and unprofessional. The oral story matched the written motions and both were false.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Plaintiff's materials attribute to this hearing the first oral version of the "did not receive the 911 call until the MSC" account. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

040. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Navaratnasingham (Reyna present)

Illegal and unprofessional. Confronted with sworn proof of production, counsel answered with a personal-knowledge dodge that the tribunal took as fact.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The court accepted the personal-knowledge dodge as fact: "I see. Okay."

What they did. After Jeremy Jessup of Dolan Law Firm testified under oath that the 911 audio, about five BWC videos, and CAD were "produced to defense counsel" and served at plaintiff's deposition (Hr'g Tr. 139-140), Navaratnasingham told the court: "So this is news to me. We didn't realize that prior to handling counsel may have received it, and I can't confirm whether that was produced. ... our office did not receive the 911 call until the day of the MSC -- the day before the MSC and that was an attachment link." Court: "I see. Okay." (p. 141.) The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded); extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

041. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Navaratnasingham

Illegal and unprofessional. Having heard the sworn contrary testimony, counsel repeated the false premise rather than correct it.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Later in the same hearing counsel reinforced the non-production account (Hr'g Tr. 163-165, 176-177). The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

042. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Reyna

Illegal and unprofessional. The one lawyer in the room who had personally subpoenaed the 911 call said nothing while his colleague disclaimed knowledge of it.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Reyna, signer of Complex CA1147102-021, was present for the Jessup testimony and the "news to me" statement and did not correct MIL 17's "no proper subpoena" representation. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

043. 2025-02-18 | TX none (hearing 2025-02-18 ruling) | Defense representations / court reliance

Illegal and unprofessional. The court's refusal of time rested entirely on counsel's account of what the defense did and did not have.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. Plaintiff was denied time to meet the false surprise story.

What they did. Court denied plaintiff's continuance and related CCP 473 relief, reasoning plaintiff had the materials "since August of 2024" and the defense was "not blocking" (pp. 178, 181-182). The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

044. 2025-02-18 | TX none (hearing 2025-02-18; MIL 17 granted without prejudice) | Defense MIL predicates

Illegal and unprofessional. The evidence was excluded because the defense said it did not know where it came from, and the defense knew exactly where it came from.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The 911 materials were excluded because the defense said it did not know their origin.

What they did. The exclusion order rested on the "unknown origin" and non-production representations. The legal defect: extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

045. 2025-02-28 | TX none (hearing 2025-02-28; certified transcript) | Court, on the defense's word

Illegal and unprofessional. The defense obtained the benefit of an officer-of-the-court presumption it had already forfeited.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Judge Wong: "I'm not going to question a lawyer's remarks regarding what they have and don't have" (Hr'g Tr. 291:26-292:7), and shifted to plaintiff the burden of proving what the defense possessed (p. 293:1-3).

037B. 2025-03-11 | TX 81230084 (MIL 20) | Navaratnasingham

Illegal and unprofessional. Counsel treated a production dispute about one later treater as proof the injured party had no medical case.

Severity. High. The same empty 2021 medical file was restated as a reason to keep the injury from the jury.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. MIL 20 (FSX 81230084) represents: "On March 3, 2025, Plaintiff failed to produce any records of treatment by Dr. Rene Gonzalez"; "As of the filing of this motion, Plaintiff has failed to produce any records of treatment by Dr. Rene Gonzalez per the Court's directive." The same motion attaches plaintiff's March email serving other treating records (ER notes and additional treaters). The defense used a single-treater gap to move exclusion of "any and all testimony, records and/or opinions." The legal defect: A categorical exclusion motion built on "no records" while the motion itself attaches other medical records is a misleading statement to the tribunal (CRPC 3.3(a)(1)) if offered as a claim that the defense had no medical file at all.

046. 2025-03-12 | TX none (Amended Exhibit List doc. 09506069) | PSA

Illegal and unprofessional. The defense planned to put the plaintiff's pleaded statutes in front of the jury as evidence while later opposing any instruction on them.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Defendant's Amended Exhibit List (doc. 09506069) lists the complaint (with its pleaded Veh. Code 22107 and 21804(a) sections) as Exhibit 500, plus 501 (responses), 503 (traffic report), 504A-E (BWC), 505 (Fernandez deposition). The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

Part V. The trial: April 2025

046A. 2025-04-07 / 04-10 | TX none (orders 2025-04-07 and 2025-04-10 on CT index) | Court, on the defense MILs

Illegal and unprofessional. The defense converted its own empty 2021 medical file into a court order that the injured party could not prove he was hurt.

Severity. High. The same empty 2021 medical file was restated as a reason to keep the injury from the jury.

Consequence. Causation, future care, and earnings were ordered out of the case.

What they did. Orders granting MIL 8 (liability insurance) and MIL 19 (April 7); orders granting MIL 2 (causation testimony), MIL 3 (future medical specials), MIL 14 (future medical treatment), and MIL 18 (earnings) on April 10, 2025 (CT chronological index). The medical wall of item 037A became the law of the trial. Combined with the 911 / BWC provenance lie (items 035-044), the jury was kept from the impact evidence and from the injury evidence. The legal defect: Exclusion orders procured on the "no medical" and "not produced" predicates are the prejudice half of the extrinsic-fraud and due-process chain (Kulchar; Modnick; Soule).

047. 2025-04-16 (Day 7, RT7) | TX none (RT7 2025-04-16) | Reyna

Illegal and unprofessional. The subpoena's own author told the court the subpoena had not produced the document that contradicted his client.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Reyna represented that the supplemental report was "not anything that we received as part of the subpoena" (RT7 p. 156:5-16 per TAC; continuous-line cites vary); the court excluded it. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

048. 2025-04-16 | TX none (RT7 2025-04-16) | Navaratnasingham

Illegal and unprofessional. Counsel conceded the subpoena existed only when the concession helped exclude the next document.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Acknowledged the defense "did subpoena" police records and "did not receive the supplemental narrative as part of that subpoena response" (RT7 157:7-16), contradicting MIL 17's "no proper subpoena" claim without correcting MIL 17. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

049. 2025-04-16 | TX none (RT7 2025-04-16) | Reyna

Illegal and unprofessional. Feigned ignorance of a recording named in his own subpoena delayed the jury's exposure to the confession.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Claimed he was "not sure what recording" plaintiff meant regarding the 911 call (RT7 approx. ll. 2990-2994); the court deferred admission of the 911 pending plaintiff's testimony.

050. 2025-04-16 | TX none (RT7 2025-04-16) | Navaratnasingham

Illegal and unprofessional. The admission that the defense had the videos all along came only after the exclusion rulings that the denial had procured.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Counsel admitted the videos "were provided by Dolan" and described curating five videos down to "about 8 or 9 minutes" (RT7 p. 213:13-15 or 214:13-15 depending on the memo). The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

051. 2025-04-16 onward | TX none (RT7 onward; no correction filing) | Navaratnasingham, Reyna, PSA

Illegal and unprofessional. A lawyer who learns the court is relying on his false statement must fix it, and these lawyers rode the false statement to verdict.

Severity. High. Counsel told a trial judge, as an officer of the court, that the defense did not have the confession tape or did not know where it came from.

Consequence. The February rulings rode through verdict on a story counsel had already contradicted.

What they did. After the "provided by Dolan" admission the defense did not withdraw or amend MIL 6 or 17, did not notify the court that "news to me" was false, and left the February 18 and 28 rulings undisturbed through verdict. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

052. 2025-04-16 | TX none (RT7 2025-04-16) | Defense (cross of Fernandez)

Unprofessional. The defense put a non-witness's fault conclusion before the jury while keeping the eyewitness video out.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Defense elicited Fernandez's opinion that plaintiff "caused the collision" under Veh. Code 21651(b) over speculation and foundation objections ("opened the door"), RT7 153-154; Fernandez admitted he did not witness the collision (66:17-19) and relied on other officers (67:20-26; 70:10-18).

053. 2025-04-16 | TX none (RT7 2025-04-16) | Defense

Unprofessional. The defense proved its theory of the plaintiff's conduct through a witness who was not there.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Elicited a claim of plaintiff's northbound wrong-way travel and speed through the officer (RT7 151:5-18); plaintiff objected on hearsay and lack of firsthand knowledge (151:19-22); counsel rephrased.

054. 2025-04-17 (Day 8, RT8) | TX none (RT8 2025-04-17) | Abdelhalim

Unprofessional. The defendant confirmed the confession was his and asked the jury to believe he did not mean it.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "Yes. That is my voice." The recording was played (RT8 107:15-108:28; 110:15-111:12). He then claimed fear, confusion, and repetition of plaintiff's accusations, and maintained he felt no impact (RT8 117:7-120:14; 128:4-129:12; 132:19-133:25).

055. 2025-04-21 | TX none (Exhibit 500 admitted 2025-04-21; doc. 09573521) | PSA

Illegal and unprofessional. The defense placed the plaintiff's pleaded Vehicle Code sections before the jury as a document and then denied the jury the law those sections state.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Defendant's Exhibit Record shows Exhibit 500 (five-page complaint, CT 1:40-44, pleading Veh. Code 22107 and 21804(a)) admitted April 21, 2025, along with 501A, 501B, 503A-D (curated BWC clips), and 509. Plaintiff states he did not learn of the formal admission until August 2025. The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

056. 2025-04-21 | TX none (Exhibit 509 admitted 2025-04-21) | PSA

Unprofessional. The defense used a communication between the plaintiff and his own former lawyer to impeach him.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. An email from plaintiff's former counsel to plaintiff was admitted and argued as a credibility attack (RT10 53:20-27).

057. 2025-04-21 | TX none (Exhibits 503A-D; RT10) | PSA

Illegal and unprofessional. Having claimed for months not to know where the video came from, the defense then edited it.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Only defense-selected BWC clips (503A-D, roughly 8-9 minutes from five videos) went to the jury; full source recordings were not admitted. The legal defect: fairness / suppression (CRPC 3.4).

058. 2025-04-22 (RT10) | TX none (RT10 2025-04-22 closing) | Defense counsel

Illegal and unprofessional. The defense argued the contents of the plaintiff's pleading as proof of fact while treating the statutes in that same pleading as forbidden.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Closing invoked the complaint, the December 2021 discovery responses, and footage as proof of scooter riding (RT10 49:3-15); plaintiff's hearsay objection overruled. The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

059. 2025-04-22 | TX none (RT10 2025-04-22 closing) | Defense counsel

Illegal and unprofessional. Counsel told the jury the turn was legal while ensuring the jury was never told what the turning statute required.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Core theory at RT10 54:16-24: "My client checked his mirrors, it was clear. He made a legal right turn," and plaintiff failed to yield. Also argued no loss of consciousness, intoxicated observer, unproven scuff, wrong-way travel, and the Dolan email (RT10 50-54). The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

060. 2025-04-22 | TX none (RT10 charge 2025-04-22) | Defense (charge)

Illegal and unprofessional. The only Vehicle Code section the jury received as law was the one aimed at the injured party.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The only Vehicle Code section given as law was the one aimed at the injured party.

What they did. Instructions included Veh. Code 21651(b) negligence per se against plaintiff and general negligence, with no turning-duty instruction (CACI 705 / Veh. Code 22107) for plaintiff (RT10 16-17).

061. 2025-04-23 (RT11) | TX none (Jury Request No. 1; doc. 09577565) | Jury / defense pathway

Illegal and unprofessional. The defense's exhibit created the question, and the defense then benefited from the refusal to answer it.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Jury (doc. 09577565, 10:09 a.m.) asked whether it may consider those sections and whether it would be instructed; the admitted Exhibit 500 complaint is the likely source (respondent later conceded this, item 088). The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

062. 2025-04-23 | TX none (RT11 2025-04-23) | Court (defense as beneficiary)

Illegal and unprofessional. The defense stood by while the court told jurors that enacted law was not evidence, then accepted Vehicle Code definitions it had requested.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The jury was forbidden to consider the turning statutes it had just named.

What they did. Court's response (10:37 a.m.): the jury "may not consider" those sections "nor will the court instruct"; later, "neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. They simply are not permitted to consider that as evidence in the case, period" (RT11 7:4-9). Nine lines later the court supplied Vehicle Code definitions of "vehicle" and "highway" (RT11 7:16-26). The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

063. 2025-04-23 | TX none (RT11 2025-04-23) | Defense counsel

Illegal and unprofessional. The defense asked the jury be given Vehicle Code text on the same morning it accepted a ruling that Vehicle Code text was "not part of the evidence."

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. By PSA's own later account, "Defendant's counsel requested that the definition for 'highway' also be included" and Veh. Code 670 and 360 were "submitted to the jury." The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

064. 2025-04-23 | TX none (verdict 2025-04-23; polled RT11 15-16) | Jury

Illegal and unprofessional. The thinnest possible verdict was obtained on a record from which the defense had removed the confession's provenance, the eyewitness footage, the medical proof, and the turning statute.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. A 9-3 defense verdict issued on a stripped record and became the judgment later treated as final and preclusive.

What they did. Verdict for defendant on the minimum civil majority; polled (RT11 15-16). This is the verdict the later papers treat as a merits adjudication. It issued after the false non-production MILs (035-044), the medical-exclusion orders (037A, 046A), the one-sided Vehicle Code charge (060), and the refusal to instruct on the statutes the jury named (062). The legal defect: A verdict obtained after the jury was forbidden to consider enacted turning-duty law (CCP 614; Evid. Code 310, 451; CCP 647) and after exclusion orders procured on false provenance statements is the due-process / Soule / Kulchar injury as pleaded. It is not a clean merits finding.

Part VI. Judgment, costs, and post-trial motions: April to August 2025

065. 2025-04-25 / 2025-04-29 | TX none (Judgment CT 6:1689; Notice of Entry 2025-04-29) | Court; Reyna

Illegal and unprofessional. The lawyer who had disclaimed knowledge of his own subpoena signed the paper that made the verdict final.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Judgment on verdict entered (CT 6:1689); Notice of Entry filed and served April 29, 2025 (CT 6:1691), signed by Alberto Reyna per workspace narrative. The legal defect: extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

066. 2025-04-30 | TX 76186261 (Memorandum of Costs) | Abdelhalim / PSA

Unprofessional. Having won by keeping the evidence out, the defense billed the injured party seventy-six thousand dollars for the privilege.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. A fee-waiver plaintiff was billed more than seventy-six thousand dollars on that verdict.

What they did. Cost memorandum filed (Tx 76186261) against a fee-waiver plaintiff.

067. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | Robert K. Phillips, Navaratnasingham, Reyna, PSA

Illegal and unprofessional. The waiver theory that later carried the appeal was first planted by trial counsel in a post-trial brief, without citing CCP 647.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The waiver theory that later carried the appeal was planted here, without CCP 647.

What they did. The opposition argued CACI 705 "would not have provided the jury with any additional pertinent instruction," that CACI 400/401 were "essentially the equivalents" of the vehicle instructions, and that "Plaintiff raised no objection to the jury instructions that were provided to the jury during the pre-trial hearing." The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)).

068. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | PSA

Illegal and unprofessional. The defense called the pro per plaintiff a liar for describing a colloquy the defense itself admits was unreported.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The opposition accused plaintiff of "an outright misstatement of the facts" for saying the vehicle/highway definitions were delivered off record, while conceding defense counsel requested the "highway" definition and that "both sides agreed." The legal defect: fairness / suppression (CRPC 3.4).

069. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | PSA

Illegal and unprofessional. The defense told the post-trial court the confession had been fairly tried without mentioning how it had kept the confession's origin in doubt.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Argued the jury heard the 911 call and "gave the weight that it did," treating the admission as fully aired while never disclosing that the same firm's MILs had delayed and narrowed it on a false provenance story. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

070. 2025-05 to 2025-07 | TX none (post-trial oppositions; order 2025-07-15 CT p. 1833) | PSA

Illegal and unprofessional. The defense defended a judgment it knew, since April 16, rested on representations its own lawyer had contradicted in open court.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Defense opposed every post-trial motion; on July 15, 2025 Judge Wong denied all eight in one order. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)).

071. 2025-08-08 (verify) | TX none (cost figure on docket; confirm ROA) | Defense as prevailing party

Unprofessional. A cost figure from a fraud-procured judgment became a recurring leverage number in later cases.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Workspace status lines state the \$76,308.90 memorandum was "entered" August 8, 2025 and that plaintiff "still owes" it; Porter Scott later cited approximately \$75,000 owed in its 2026 footnotes without a cost order citation (item 108).

Part VII. The appeal, A173827: August 2025 to September 2026

072. 2025-08-06 | TX none (Substitution of Attorney A173827 2025-08-06) | Rebekah A. Morrissey (SBN 287379), Koyama & Costello, CSAA staff counsel

Unprofessional. The insurer's own staff counsel took over the appeal while the insurer told two trial courts it had no litigation role in the underlying case.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Substitution of Attorney; counsel block uses REBEKAH.MORRISSEY@CSAA.COM; Tyler J. O'Connell (Porter Scott) also listed on AOB service.

073. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Milestone. Filed for Abdelhalim individually and dba Sonoma Liquor.

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. Filed for Abdelhalim individually and dba Sonoma Liquor.

073A. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey / CSAA

Illegal and unprofessional. CSAA staff counsel told a reviewing court that de novo review of RT11 shows a waiver. It does not. The transcript shows a judicial refusal, not a party's surrender of the instruction.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. A reviewing court was told de novo review of RT11 shows a waiver. The transcript shows a judicial refusal.

What they did. RB 6:8-10: "The propriety of jury instructions is a question of law which is reviewed de novo. (Martinez v. Rite Aid Corp. (2021) 63 Cal.App.5th 958, 969.)" A de novo reading of that same record does not state a waiver of the court's duty to instruct. What it states is: the jury named Veh. Code 22107 and 21804(a) (Request No. 1); the court refused to instruct and said those sections "were not part of the evidence ... period" (RT11 7:4-9); plaintiff said "Of course we have an objection" (RT11 p. 10); CCP 647 deems a refused instruction excepted to; Lund v. San Joaquin Valley Railroad (2003) 31 Cal.4th 1, 7 confirms no further exception is required. No transcribed party stipulation waives the instruction. Items 074-092 are the sentence-by-sentence overlay that converted that de novo record into a waiver colloquy. The legal defect: CRPC 3.3(a)(1) and CRC 8.204(a)(1)(C): a factual waiver assertion without a record pin; CRPC 3.3(a)(2) for omitting CCP 647 and Lund while arguing forfeiture.

074. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. A brief about a jury's mid-deliberation question on the law never mentioned the statute that governs jury questions on the law.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The brief never cites Code of Civil Procedure section 614, the statute governing a jury's request for information on a point of law after retiring. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

075. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. Respondent built an entire forfeiture argument while hiding the statute that says no exception was required.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The brief argues waiver from silence without citing CCP 647 (refusal of an instruction is deemed excepted to) or Lund (2003) 31 Cal.4th 1, 7. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)).

076. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief argued about law-as-evidence without the two Evidence Code sections that answer the question.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The brief disputes whether statutes are "evidence" without citing the sections that make questions of law the court's province and mandatory judicial notice of California statutes. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)).

077. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. An insurer that controlled the defense and would pay any judgment was disclosed as no one.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The certificate lists no interested party while counsel litigates from CSAA's email domain and CSAA funded the defense.

078. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief erased the unreported sidebar, the rule 8.137 request, and the sequence of RT11 to manufacture silence.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 8:8-15: "There is no evidence in the record that at the time question #1 was raised and responded to Appellant made any objection ... the only evidence in the record is found in RT 11, which documents the discussion regarding jury question #3." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

079. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. A one-word answer about jurors accessing statutes on their own was rebranded as agreement that the court need not state the law.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 8:17-26 quotes the court asking whether plaintiff objected "to the instruction given in response to Jury request number one" and plaintiff's "No. I have objection to the fact they were accessing or requesting all of them anyways," then treats this as no objection to the refusal to instruct. The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

080. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief cut the quotation at the comma that changed its meaning.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 8:27-30 quotes "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions," omitting the next sentence contrasting Request No. 2, and presents it as agreement with the refusal to instruct on Veh. Code 22107 (RB 10:18-19). The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

081. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief moved the plaintiff's objection to a different question so it could say none was made to the first.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 8:31-9:4 asserts plaintiff's "Of course we have an objection" (RT11 p. 10) concerned only jury question 3. The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

082. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. A judge's after-the-fact characterization was offered as if it were the plaintiff's stipulation.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 9:5-12: "The court on page 10 noted Appellant made no objection when the responses to Jury questions #1 or #2 were being determined." The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

083. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. Respondent argued a pro per's wrong CACI number forfeited the law the jury itself asked for by statute number.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 10:13-17: because plaintiff's proposed list had CACI 707 rather than 705, the turning-duty claim is waived (Agarwal, Finn, Metcalf, Gregory). The legal defect: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

084. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. An objection to jurors researching law on their own was recast as opposition to the judge stating the law.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 10:15-21: "it is undisputable that Appellant vehemently opposed giving any instruction on Vehicle Code section 22107 ... Appellant moved for a mistrial when the jury even asked to be instructed ... He admitted in open court that he agreed with the Court's refusal to instruct." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

085. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief denied on page 10 what it had conceded on page 6.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 10:29-30: "There is no evidence in the record that Appellant requested CACI 705, 707, or 710 be given or that such a request was denied." RB 6:21-22 admits "[t]he list requested CACI 707"; AugCT Exh. A (doc. 09580112) lists 707, 710, and the 700-710 range. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

086. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. Respondent invented a charge-conference agreement out of thin air and asked the court to presume it.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 10:30-31, with no record citation. The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

087. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief told the appellate court the trial judge never said what the transcript shows him saying.

Severity. High. The jury asked for the turning statutes by number and was told those statutes were not part of the evidence. The later appeal treated that refusal as the plaintiff's waiver.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. TOC heading says the response "Was Based On The Law Not Being in Evidence" (RB 3:20); body heading says "WAS NOT" (RB 11:28-29); RB 11:31-12:4 calls plaintiff's premise "simply inaccurate" and "wholly unsupported by the record." RT11 7:4-9 records the court saying the sections "were not part of the evidence ... period." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

088. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. Respondent admitted its own exhibit prompted the jury's question and still defended refusing to answer it.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 13:29-32 admits the admitted complaint with Veh. Code 22107 "is likely the source of the jury's question," while maintaining the statutes were properly withheld.

089. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. Respondent speculated the jury ignored the confession, without a citation, to defeat prejudice.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 13:3-5, no record cite; omits the 9-3 poll and the jury's own question as prejudice signals. The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

090. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief told the court a categorical ban on named statutes was cured by a generic care instruction.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 12:19-31: general reasonable care makes the turning instruction surplus.

091. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. A jury asking to be instructed on two named statutes was described as not asking about the law.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 13:17-28 / 14:8-11: the question was "not about the substance or based on confusion of the law itself but on whether they should consider the Vehicle Code sections alleged in the Complaint."

092. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Illegal and unprofessional. The brief closed on a factual claim its own page 6 and the augmented record refute.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. RB 14:16-20. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

093. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Unprofessional. Citation hygiene failed in the one case the brief chose to distinguish.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. The brief distinguishes a Drury left-turn case without a complete reporter pin.

094. 2026-08-20 | TX none (Motion to Disregard filed 2026-08-20) | Milestone

Milestone. Targets RB 8:8-16; 9:5-12; 10:15-21; 10:29-31; 11:6-11; 13:25-28; 14:16-20 under CRC 8.204(a)(1)(C).

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. Targets RB 8:8-16; 9:5-12; 10:15-21; 10:29-31; 11:6-11; 13:25-28; 14:16-20 under CRC 8.204(a)(1)(C).

095. 2026-09-01 | TX none (Opposition to Motion to Disregard filed 2026-09-01) | Morrissey

Illegal and unprofessional. Asked to withdraw speculation, respondent added more speculation and called the absence of a reporter a waiver.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Opposition: "If this conversation ever occurred, it is not part of the appellate record and therefore constitutes waiver"; "There is no evidence in the appellate record that the trial court ever refused to give CACI 705, 707, or 710"; plaintiff proposed 152 instructions and the court gave 23, so "Obviously, there was some discussion ...

nothing indicating that the court refused ... rather than the parties simply agreeing." The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

096. 2026-09-10 | TX none (A173827 unpublished opinion 2026-09-10) | Court of Appeal (respondent's frame adopted)

Illegal and unprofessional. The appellate court itself found respondent's brief contained factual assertions without record support, and the forfeiture theme those assertions carried still shaped the result.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. An unpublished affirmance on forfeiture adopted the waiver frame even while noting unsupported facts in the brief.

What they did. Opinion affirms on forfeiture "with the agreement of the parties" framing; footnote 1 denies the motion to disregard "as unnecessary" and states that unsupported factual assertions in respondent's brief are disregarded (Tanguilig). The opinion does not cite CCP 647, Lund, RT11 7:4-9, or the 9-3 poll. The legal defect: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

097. 2026-08-03 to 2026-09 | TX none (RB 2026-08-03 compared with 801/802 papers) | Morrissey / CSAA apparatus

Illegal and unprofessional. The insurer told the Court of Appeal the issues were never squarely decided and told two trial courts they were conclusively decided.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The RB admits liability was disputed, no turning instruction was given, the verdict is "just as likely" a no-impact finding, and duty was never specifically instructed; in 801 and 802 the same insurer's counsel says CGC-21-594102 "fully litigated" the investigation and duty questions.

Part VIII. The 2025-2026 actions: CGC-25-631801 and CGC-25-631802 (Porter Scott)

098. 2025-12-23 | TX none (CGC-25-631801 and CGC-25-631802 filed 2025-12-23) | Milestone

Milestone. Fee waiver granted the same day.

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. Fee waiver granted the same day.

099. 2026-02-13 | TX none (O'Connell declaration 2026-02-13) | Tyler J. O'Connell, Porter Scott

Milestone. Earliest Porter Scott paper on the ROA mirror.

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. Earliest Porter Scott paper on the ROA mirror.

100. 2026-03-04 / 03-05 | TX none (email 2026-03-04 / 03-05) | O'Connell

Unprofessional. The first communication from the new defense firm was a deadline backed by a threatened dispositive motion.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "I will be forced to move to quash the service of summons on the original, and now stale Complaints in both cases" unless plaintiff filed consents to electronic service by March 6.

101. 2026-03-06 | TX none (email 2026-03-06) | O'Connell

Unprofessional. Compliance produced a new deadline rather than a withdrawn threat.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Demanded court filing by end of day or "I will have to file my Motions to Quash."

102. 2026-03-27 | TX none (email 2026-03-27; later sworn in April filings) | O'Connell

Unprofessional. A service objection became a repeated sworn narrative used to color the plaintiff as noncompliant.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Asserted March 13 service of the FACs on CSAA's agent was defective and demanded re-service on Porter Scott; the same assertion appears under penalty of perjury in the April 13 and April 22 declaration stacks.

103. 2026-04-06 | TX none (certified meet-and-confer letters 2026-04-06) | Chad S. Tapp / O'Connell

Illegal and unprofessional. The meet-and-confer was a fee threat, not a conference.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Certified letters in both cases threatened anti-SLAPP motions with "mandatory" fees unless the pleadings were withdrawn before the April 22 deadline; "my clients will vigorously seek recovery of their attorneys' fees and costs." The legal defect: paper certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP used without the required step-one / 425.17 gateway analysis.

104. 2026-04-06 | TX none (email 2026-04-06) | O'Connell

Unprofessional. Counsel sought to keep the tribunal from seeing the correspondence while statutory meet-and-confer obligations were live.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "I again ask that you refrain" from copying the Court; hardened April 27 to "cease copying the Court and various government agencies."

105. 2026-04-09 | TX 79007825 (801 anti-SLAPP packet) / TX 79007560 (802 anti-SLAPP packet) | Tapp / O'Connell

Illegal and unprofessional. A special motion to strike that never identifies which pleaded facts supply which elements is a motion built to skip the analysis the Supreme Court made mandatory.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. Two trial courts were asked to strike the empty-file and fraud-on-the-court cases without the mandatory step-one analysis.

What they did. The MPAs recite the two-step test in name and jump to "Plaintiff cannot establish a probability of prevailing" without performing the Park v. Board of Trustees (2017) 2 Cal.5th 1057 elements-supply analysis; they omit Baral v. Schnitt, Bonni v. St. Joseph Health, Wilson v. CNN, Action Apartment Assn., and Flatley v. Mauro. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP used without the required step-one / 425.17 gateway analysis.

106. 2026-04-09 | TX 79007825 (801 anti-SLAPP MPA) | Tapp / O'Connell (801 MPA)

Illegal and unprofessional. Confronted with the lie about receiving the police evidence, the new defense firm did not deny it; it claimed the lie was privileged.

Severity. High. A false possession story was offered to a tribunal that then excluded evidence and denied time.

Consequence. The lie about receiving the police evidence was not denied. It was claimed as privilege.

What they did. Responding to the FAC's statement that PSA told the court the materials were "news to me" when the defense had possessed them, the 801 MPA says: "Again, this is protected conduct ... the Anti-SLAPP statute bars this type of allegation, in kind," and "even if those 'misrepresentations' were described, it would not matter, as the statements would clearly fall within the" litigation privilege. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); anti-SLAPP used without the required step-one / 425.17 gateway analysis; extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

107. 2026-04-09 | TX 79007560 (802 anti-SLAPP MPA; DocID 10152120) | Tapp / O'Connell (802 MPA, Tx 79007560 / DocID 10152120)

Illegal and unprofessional. Confronted with the empty investigation file, the insurer admitted it never got the evidence and called the file complete anyway.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The insurer admitted it never obtained the 911, BWC, or CAD and still called the investigation complete.

What they did. The 802 anti-SLAPP MPA concedes non-obtainment before the February 25, 2021 letter while asserting the investigation reviewed available evidence. The legal defect: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); anti-SLAPP used without the required step-one / 425.17 gateway analysis.

108. 2026-04-09 (sworn) | TX 79007560 / companion declarations 2026-04-09 | O'Connell declaration

Unprofessional. The first sworn "harassment" label was applied to ordinary written discovery and later recycled as vexatious-litigant color.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Under penalty of perjury: "duplicative, misnumbered, burdensome, and harassing discovery requests."

109. 2026-04-10 | TX none (email 2026-04-10) | O'Connell

Unprofessional. Counsel threatened sanctions for seeking sanctions without naming a statute for either.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "My office will seek attorneys' fees"; if plaintiff files a motion to compel meet-and-confer with a sanctions request, defense "will oppose it and request further sanctions against you, for frivolously seeking to sanction my office"; "no such motion to compel exists."

110. 2026-04-13 | TX none (801 demurrer 2026-04-13) / TX 79038567 (802 demurrer MPA) | Tapp / O'Connell

Illegal and unprofessional. A categorical "cannot" certification on extrinsic fraud omitted every controlling extrinsic-fraud case.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. 801 demurrer MPA calls the December 23, 2025 lawsuit "frivolous" and time-barred even if treated as a CCP 473(b) motion; asserts plaintiff "cannot demonstrate extrinsic fraud" while omitting Westphal, Kulchar, Modnick, Sanders, Cansino, and Crowley. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

111. 2026-04-13 | TX 79038567 (802 demurrer MPA) | Tapp / O'Connell (802 demurrer)

Illegal and unprofessional. Counsel cited the case for the opposite of what it holds on the point that mattered.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. 802 papers treat *Moradi-Shalal v. Fireman's Fund* (1988) 46 Cal.3d 287 as barring all insurance-related claims, omitting the common-law carve-out preserved in *Moradi-Shalal* itself and confirmed in *Manufacturers Life* (1995) 10 Cal.4th 257 and *Zhang v. Superior Court* (2013) 57 Cal.4th 364. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

112. 2026-04-16, 04-22, 04-25 | TX none (plaintiff letters 2026-04-16 / 04-22 / 04-25) | Milestones

Milestone. April 16 meet-and-confer; April 22 CCP 128.7(c)(1) safe-harbor letter (21-day clock to May 14); April 25 merits letter.

Severity. None as a charge. This is a date stamp on the chronology.

Consequence. It orients the next charged acts. It is not itself the injury.

What they did. April 16 meet-and-confer; April 22 CCP 128.7(c)(1) safe-harbor letter (21-day clock to May 14); April 25 merits letter.

113. 2026-04-22 | TX 79127897 (802 CCP 436 MPA) | Tapp / O'Connell

Illegal and unprofessional. An unsourced dollar figure from the tainted judgment was dropped into a footnote to prejudice the court.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Motions to strike assert plaintiff "cannot establish the requisite 'extrinsic'" fraud and, in footnotes, that plaintiff "currently owe's \$75,000 in attorney's fees" (801) / "owes approximately \$75,000.00 in costs" (802), with no cost order cited. Fourth sworn CCP 1015 defective-service declaration. The legal defect: paper certified without the required factual or legal support (CCP 128.7(b)).

114. 2026-04-22 (billing entry disclosed Aug 19) | TX none (invoice entry 2026-04-22; disclosed Aug 19) | Porter Scott

Unprofessional. The vexatious strategy was under way the same day plaintiff's safe-harbor letter arrived, three months before any court had ruled.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Unredacted invoice later served shows April 22 research on "VEXATIOUS LITIGANT AND REQUIREMENT TO POST SECURITY" and review of a sample motion "GIVEN CLEAR APPLICABILITY."

115. 2026-04-23 | TX none (opposition to leave 2026-04-23) | Tapp / O'Connell

Illegal and unprofessional. Counsel told the court no authority existed on a point governed by two published Court of Appeal decisions and a subdivision of the statute counsel was invoking.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. Leave to amend was opposed on the assertion that no authority existed, while published authority and the statute itself existed.

What they did. "Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion." JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871-873, and CCP 425.16(f) are unmentioned. The brief also accuses plaintiff of "gamesmanship and complete lack of respect for this Court." The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP used without the required step-one / 425.17 gateway analysis.

116. 2026-04-24 | TX none (email 2026-04-24) | O'Connell

Unprofessional. Counsel answered a citation to controlling authority with ridicule and a sanctions threat.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis." Threatened sanctions for "uncivil conduct" in naming Navaratnasingham and Reyna; called plaintiff's manner "clearly harassing"; billed the same day as "SANCTIONABLE CONDUCT."

117. 2026-04-27 | TX none (email 2026-04-27) | O'Connell

Illegal and unprofessional. Inside the safe-harbor window, counsel refused to read the authorities, refused to withdraw, and demanded the plaintiff stop writing.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Reply to plaintiff's Moradi-Shalal / common-law preservation letter: the content is "entirely nonsensical and does not warrant a response"; "my clients' motions will not be vacated or withdrawn"; demanded plaintiff cease meet-and-confer letters as "burdensome, harassing, repetitive." The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)).

118. 2026-04-29 / 04-30 | TX none (email 2026-04-29 / 04-30) | O'Connell

Illegal and unprofessional. A statutory designation with lifelong consequences was brandished by email as a threat to make a pro per stop appearing.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Asserted plaintiff "cannot appear" after the 4:00 p.m. tentative-contest deadline; attacked his appearance as a Rules of Court violation; "if you continue to file this nonsense, I will move the Court to have you deemed a vexatious litigant." The legal defect: vexatious-litigant elements missing (CCP 391(b)).

119. 2026-05-01 | TX none (CM-110 2026-05-01) | Porter Scott

Unprofessional. "Defendants' may file a motion to have plaintiff deemed a vexatious litigant"; lists "burdensome and harassing discovery."

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. "Defendants' may file a motion to have plaintiff deemed a vexatious litigant"; lists "burdensome and harassing discovery."

120. 2026-05-04 / 05-05 | TX none (email 2026-05-04 / 05-05) | O'Connell

Illegal and unprofessional. Counsel threatened contempt for a litigant appearing at his own hearing.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. "I will address your harassing manner of litigating this case, with the Court." "If you attempt the same inappropriate appearance at this hearing in Dept 301, I will request ... potentially contempt sanctions for violating the Rules of Court."

121. 2026-05-05 / 05-06 | TX none (anti-SLAPP replies 2026-05-05 / 05-06) | Porter Scott

Unprofessional. Every plaintiff filing was met with a request that he pay for having filed it.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Anti-SLAPP replies ask the court to "consider issuing sanctions" for multiple oppositions; discovery oppositions seek fees.

122. 2026-05-12 | TX none (hearing 2026-05-12; formal order DocID 10361462 2026-08-06) | Porter Scott (801 hearing, Dept. 301)

Illegal and unprofessional. The defense won by telling one court that the 2025 misrepresentations were litigation conduct already adjudicated, a position it would contradict in the next courtroom.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. The court accepted defense positions that the FAC targets litigation conduct, that MIL 6/8/17 issues were "fully litigated," and that CCP 425.17(c) is inapposite. Formal order entered August 6, 2026 (DocID 10361462). The legal defect: anti-SLAPP used without the required step-one / 425.17 gateway analysis.

123. 2026-05-15 | TX none (email 2026-05-15) | O'Connell

Unprofessional. Fees were framed as a meter running against the plaintiff for continuing to litigate.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Email after the anti-SLAPP ruling.

124. 2026-05-27 | TX none (email 2026-05-27) | Tapp

Unprofessional. A partner's response to a bar report was an insult and a billing entry for a sanctions motion.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Same-day invoice shows billing to commence CCP 128.7 and CCP 391 motion preparation and "ISSUING CEASE AND DESIST TO PLAINTIFF."

125. 2026-06-16 / 06-17 | TX none (email 2026-06-16 / 06-17) | O'Connell

Unprofessional. Filings "nonsensical, meritless"; "I will be completely justified in moving to have you deemed a vexatious litigant."

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Filings "nonsensical, meritless"; "I will be completely justified in moving to have you deemed a vexatious litigant."

126. 2026-06-23 / 06-24 | TX none (802 hearing 2026-06-23 / 06-24) | Porter Scott (802)

Illegal and unprofessional. The defense obtained the anti-SLAPP remedy while skipping the statutory threshold that decides whether the remedy is available at all.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Defense position adopted in the June 23 tentative: 425.17(b)/(c) inapplicable, proceed to 425.16, without the Simpson Strong-Tie / JKC3H8 gateway analysis. The legal defect: anti-SLAPP used without the required step-one / 425.17 gateway analysis.

127. 2026-06-30 / 07-01 | TX none (802 anti-SLAPP order DocID 10297081) | Porter Scott

Unprofessional. Defense then treats the order as "case over" and as the CCP 391.3 no-probability premise.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Defense then treats the order as "case over" and as the CCP 391.3 no-probability premise.

128. 2026-07-07 | TX none (email 2026-07-07) | Tapp

Illegal and unprofessional. Counsel threatened to bar the courthouse door before any court had found a single filing frivolous.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. "CCP 128.5 motion for frivolous pleadings and moving to have you declared a vexatious litigant" if plaintiff files another related complaint; describes the bond and pre-filing order; "final plea to stop the incessant, AI generated frivolous filings." The legal defect: vexatious-litigant elements missing (CCP 391(b)).

129. 2026-07-17 / 07-18 | TX none (proposed order / 802 fee motion 2026-07-17 / 07-18) | Porter Scott

Unprofessional. Declaration: plaintiff "continued to bombard" with "harassing email."

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Declaration: plaintiff "continued to bombard" with "harassing email."

130. 2026-07-21 / 07-22 | TX none (CCP 391 motion filed 2026-07-21 / 07-22) | Tapp / O'Connell

Illegal and unprofessional. The motion asked a trial court to gate every filing in California by a party whose only "losses" were the judgment under appeal and two anti-SLAPP orders the movant had itself just obtained.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. A statewide prefiling gate was requested against a party who had never sued these defendants to a final determination on the same primary right.

What they did. Motion to declare plaintiff vexatious under 391(b) and require security under 391.3; hearing Aug 26, Dept. 302. Declaration counts "no fewer than one-hundred and twenty-one (121) email correspondences" since February 2026. MPA seeks "judicial approval for any further filings ... in the State of California"; proposed order leaves security blank and subjects "any filings Plaintiff submits ... [to] Court screening and approval." Plaintiff's opposition catalogs: wrong primary right and wrong defendant for 391(b)(2); the PI judgment not "finally determined" while A173827 was pending; volume adjectives substituted for Morton's flagrant-abuse standard; RFJN Ex. F mis-cited as the July 1 order; "391(d)" cited for a definition found in 391(b); the FAC mislabeled "Defendant's"; asks the court to "impose sanity"; labels the Contra Costa action forum shopping. The legal defect: CCP 391(b)(2) requires repeated relitigation, after final determination, against the same defendant of the same cause or issues. That element is missing (item 130A). A motion that seeks a statewide prefiling order on a missing element is a CCP 128.7(b)(2) legal contention without support, and a 391.7 request that only a court, not counsel, may impose.

130A. 2026-07-21 | TX none (same 391 motion 2026-07-21 / 07-22) | Tapp / O'Connell

Illegal and unprofessional. Counsel branded the injured party vexatious for suing the insurer over an empty investigation file, which is not a second suit against the driver on the collision.

Severity. High. Successor counsel omitted controlling authority and then asked a trial court to brand the injured party vexatious for suing the insurer.

Consequence. The 391(b)(2) element failed on its face: wrong defendant, wrong primary right, no final determination.

What they did. There has never been a lawsuit by this plaintiff against CSAA Insurance Exchange (or against Porter Scott's 801/802 clients) on the same primary right that was finally determined against him. CGC-21-594102 was a vehicle-negligence action against Subhi Abdelhalim. The judgment, if any, ran against that driver, not against CSAA, and was on appeal in A173827 when the 391 motion was filed. CGC-25-631802 is a claims-handling / empty-file action against the insurer. CGC-25-631801 is an equity / fraud-on-the-court action. Shared facts (the 911 call, the BWC, the denial letter) do not merge those primary rights. (Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904.) CCP 391(b)(2) therefore had no merits: wrong defendant, wrong primary right, no final determination of the insurer claims. The legal defect: A 391(b)(2) filing that

cannot identify a prior finally determined action against the same defendant on the same matter is an unsupported legal contention (CCP 128.7(b)(2); CRPC 3.1, 3.3(a)(1)).

131. 2026-07-23 | TX none (801 reconsideration opposition 2026-07-23) | Porter Scott

Unprofessional. Footnote points to the pending 802 vexatious hearing.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Footnote points to the pending 802 vexatious hearing.

132. 2026-07-28 | TX none (email 2026-07-28) | O'Connell

Illegal and unprofessional. The safe-harbor letter received a one-line refusal.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Response to plaintiff's July 27 CCP 128.7 safe-harbor notice on the 391 motion. The legal defect: paper certified without the required factual or legal support (CCP 128.7(b)); vexatious-litigant elements missing (CCP 391(b)).

133. 2026-08-10 | TX none (email 2026-08-10) | O'Connell

Illegal and unprofessional. Counsel inflated an unentered fee figure past six figures by email to induce a walk-away.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. "CCP 391(b)(3) squarely applies"; plaintiff's 128.7 notice is "defective, as it is not a proper motion. Hence the 21-day safe harbor period has not commenced"; the judgment debt is "very likely well over \$100,000.00"; a walk-away settlement channel is offered; "if you attempt to serve 'exhaustive discovery' ... it will not go your way." The legal defect: paper certified without the required factual or legal support (CCP 128.7(b)); vexatious-litigant elements missing (CCP 391(b)).

134. 2026-08-11 | TX 80309587 (801 fee motion; DocIDs 10369670 / 10369671 / 10369673) | Porter Scott

Illegal and unprofessional. Regulatory complaints to the agencies charged with oversight were listed as harassment to be billed against the complainant.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Tx 80309587; DocIDs 10369670 / 10369671 / 10369673. The legal defect: anti-SLAPP used without the required step-one / 425.17 gateway analysis.

135. 2026-08-11 | TX none (email 2026-08-11; minutes seq 199-200) | O'Connell

Unprofessional. Told plaintiff he had not timely contested the tentative and could not appear; reconsideration denied (minutes seq 199-200).

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Told plaintiff he had not timely contested the tentative and could not appear; reconsideration denied (minutes seq 199-200).

136. 2026-08-19 | TX 80396124 (withdrawal) / TX 80398280 (refiled fees) | Porter Scott

Illegal and unprofessional. After plaintiff opposed, the defense withdrew, added about \$11,000, and refiled so the opposition could be called a "non-opposition."

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Withdrawal notices (801 Tx 80396124 / DocID 10384301; 802 twin) and replacement papers (Tx 80398280).

137. 2026-08-19 | TX none (391 reply 2026-08-19) | Porter Scott

Illegal and unprofessional. The plaintiff's opposition to being declared vexatious was itself counted as evidence of vexatiousness.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Also accuses plaintiff of false public statements about Abdelhalim via a Spot Fund exhibit. The legal defect: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); vexatious-litigant elements missing (CCP 391(b)).

138. 2026-08-21 | TX none (802 fee off calendar 2026-08-21; ROA seq 349) | Porter Scott

Unprofessional. A fee motion filed as leverage was pulled once it had to be argued.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. ROA seq 349.

139. 2026-08-26 | TX none (hearing 2026-08-26; order DocID 10397483) | O'Connell (Dept. 302, Judge Quinn)

Illegal and unprofessional. The motion was brought without addressing whether the court had jurisdiction to hear it during a stay, and counsel vowed to press it anyway.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Court vacated submission and ordered six-page supplemental briefs on whether it has jurisdiction while the appeals are pending (Pittman v. Beck Park Apartments (2018) 20 Cal.App.5th 1009). Order DocID 10397483. Post-hearing email: "I will not withdraw the motion to deem you what you are: vexatious." The legal defect: vexatious-litigant elements missing (CCP 391(b)).

140. 2026-08-27 to 08-31 | TX none (emails 2026-08-27 to 08-31) | O'Connell

Unprofessional. Counsel promised escalating financial punishment as a substitute for argument.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Will renew 391 "after you lose your appeals"; fees "shall" be awarded; "It's only going to get worse"; "recover every single dollar"; "AI hallucinations."

141. 2026-09-08 | TX none (801 fee reply 2026-09-08) | Porter Scott

Unprofessional. Having engineered the "non-opposition," counsel then argued from it.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Treats plaintiff's opposition as moot because the motion was withdrawn and refiled; threatens appellate fee exposure; hearing off calendar per the Aug 19 notice.

142. 2026-09-09 | TX none (802 fee reply 2026-09-09) | Porter Scott

Unprofessional. Parallel reply asserts plaintiff misattributed a quotation to Varian; frames filings as AI and burying counsel; concedes 391 still pending while offering a fee reduction.

Severity. Material. The act is below the standard of a careful officer of the court or a thorough insurer.

Consequence. The immediate harm is delay, stigma, or leverage. The lasting harm is a file that later papers could cite as if the injured party were the problem.

What they did. Parallel reply asserts plaintiff misattributed a quotation to Varian; frames filings as AI and burying counsel; concedes 391 still pending while offering a fee reduction.

143. 2026-09-10 onward | TX none (A173827 used for 391(b)(2) finality from 2026-09-10) | Porter Scott / CSAA

Illegal and unprofessional. A judgment not yet final was offered as final in the one motion where finality is an element.

Severity. Serious. The same act is below professional standard and violates a cited statute or Rule of Professional Conduct as pleaded.

Consequence. The immediate harm is the ruling, exclusion, delay, or fee threat that followed. The lasting harm is a paper record that later courts were asked to treat as true.

What they did. Defense architecture treats the unpublished forfeiture affirmance as the "finally determined" adverse judgment for the vexatious motion and as preclusion in 801/802 while the rehearing and review windows (CRC 8.264, 8.500) remain open. The legal defect: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded).

Part IX. Cross-cutting contradictions

The same defense apparatus told one tribunal one thing and another tribunal the opposite. A party may not do that.

C-1. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: "News to me"; not produced; unknown origin (594102, MILs 6/17; Feb 18, 2025). Position B: "Sure. They were provided by Dolan. He has had them for whatever, sure." (594102, RT7, Apr 16, 2025).

C-2. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: "It does not appear that ... the recording were obtained via proper subpoena process" (MIL 17). Position B: "We did subpoena" police records (RT7 157:7-16); Complex CA1147102-021 signed by Reyna.

C-3. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: CSAA "reviewed the available evidence, including the statements of its Insured" (802 MPA). Position B: CSAA "had failed to obtain" the 911, BWC, and CAD before the denial (same 802 MPA).

C-4. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Vehicle Code 22107 / 21804(a) "not part of the evidence ... period" (594102, RT11 7:4-9, defense as beneficiary). Position B: Defense counsel "requested that the definition for 'highway' also be included" and Veh. Code 670 and 360 were "submitted to the jury" (PSA opposition, May 12, 2025).

C-5. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Plaintiff's pleaded statutes admissible as Exhibit 500 and argued in closing (594102). Position B: Same statutes may not be stated to the jury as law (594102, RT11).

C-6. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: "Plaintiff raised no objection to the jury instructions" (PSA, May 12, 2025); "invited error" (RB Aug 3, 2026). Position B: Plaintiff moved for mistrial and objected on the record (RT11 pp. 3-4, 10-12); CCP 647 deems refusal excepted to.

C-7. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Investigation and duty issues were "fully litigated" and are preclusive (801/802, Porter Scott). Position B: Liability disputed, no turning instruction given, verdict "just as likely" a no-impact finding, duty never specifically instructed (A173827 RB, Morrissey).

C-8. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: The 2025 misrepresentations were litigation conduct of PSA "not even the conduct of these moving Defendants" CSAA/Carbone/Chambers (801 MPA). Position B: CSAA's staff counsel (csaa.com) files the respondent's brief defending the same judgment; CSAA "had no litigation role" (802).

C-9. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Unrecorded sidebar silence proves plaintiff waived (A173827). Position B: Unrecorded sidebar cannot be reconstructed, so plaintiff's account is an "outright misstatement" (PSA, May 12, 2025) and rule 8.137 relief denied.

C-10. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: The PI judgment is "finally determined" against plaintiff for CCP 391(b) (802 motion, July 21, 2026). Position B: The same judgment was on appeal with the RB not yet filed when the motion was drafted; CRC 8.500 review window still open today.

C-11. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Plaintiff's 128.7 safe-harbor notice is "defective ... not a proper motion" so no clock runs (Aug 10, 2026). Position B: Porter Scott's own threatened 128.7 and 128.5 motions were never served or filed.

C-12. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Plaintiff's oppositions are "twenty-two (22) opposition papers" proving vexatiousness (391 reply). Position B: Plaintiff's opposition to the refiled fee motions is a "non-opposition" (Sept 8-9 replies).

C-13. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Plaintiff "was driving in violation of Vehicle Code section 23152 and/or 23153 for which violation(s) plaintiff was convicted" (Chambers Answer, Fifth Affirmative Defense, CT 1:46). Position B: No such arrest, charge, or conviction exists; Civ. Code 3333.4 does not apply to a person who was not driving.

C-14. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Continuance papers reciting treaters, billing records, and "medical evaluations of Plaintiff" (2023-2024). Position B: MILs 2, 3, 13, 14, 18, 20: plaintiff "failed to provide any" / "failed to produce" medical evidence (Jan-Mar 2025).

C-15. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Plaintiff is a vexatious litigant under 391(b)(2) for relitigating a finally determined action (802 motion). Position B: No prior finally determined action against CSAA on the claims-handling primary right; the PI judgment ran against Abdelhalim and was on appeal.

C-16. TX none (paired filings)

Illegal and unprofessional. Position A and Position B cannot both be true, and both were offered to courts.

Severity. High when the contradiction is the difference between evidence in and evidence out, or between waiver and no waiver.

Consequence. Later courts were asked to pick the version that closed the courthouse door.

What they did. Position A: Instructional error is reviewed de novo (RB 6:8-10). Position B: The same brief treats RT11 as a waiver / invited-error record, which a de novo reading of RT11 does not contain.

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On September 22, 2026, I served the following document: **DECLARATION OF**
7 **TYLER J. O'CONNELL IN SUPPORT OF DEFENDANT CSAA INSURANCE**
8 **EXCHANGE'S SUPPLEMENTAL BRIEF IN SUPPORT OF THE COURT'S**
9 **JURISDICTION TO HEAR THE DEFENDANT'S MOTION TO DECLARE PLAINTIFF A**
10 **VEXATIOUS LITIGANT**

11	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
13	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
14	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

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18
19 Addressed as follows:

20 **PLAINTIFF, IN PRO PER**

21 Franciscus Dylan Rosario
22 7624 Melody Drive
23 Rohnert Park, CA 94928
24 soltrinox@gmail.com

25 I declare under penalty of perjury under the laws of the State of California that the foregoing
26 is true and correct. Executed on Sacramento, California on September 22, 2026.

27 **Monique Schubert**
28 Monique Schubert